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AGREEMENT

BETWEEN

THE CITY OF WAUKEGAN, ILLINOIS

AND

WAUKEGAN POLICE BENEVOLENT LABOR COMMITTEE

UNIT #42

MAY 1, 2022, THROUGH APRIL 30, 2026

Table of Contents

P R E A M B L E	-----	1
A R T I C L E II	RECOGNITION -----	2
SECTION 2.1.	RECOGNITION -----	2
SECTION 2.2.	PROBATIONARY PERIOD -----	2
SECTION 2.3.	FAIR REPRESENTATION -----	2
SECTION 2.4.	LABOR COMMITTEE OFFICERS-----	2
A R T I C L E III	NO DISCRIMINATION -----	3
SECTION 3.1.	DISCRIMINATION PROHIBITED-----	3
SECTION 3.2.	LABOR COMMITTEE MEMBERSHIP OR ACTIVITY -----	3
SECTION 3.3.	GENDER-----	3
A R T I C L E IV	DUES CHECKOFF -----	3
SECTION 4.1.	DUES DEDUCTIONS -----	3
SECTION 4.2.	INDEMNIFICATION-----	4
A R T I C L E V	MANAGEMENT RIGHTS -----	4
A R T I C L E VI	SUBCONTRACTING-----	5
SECTION 6.1.	GENERAL POLICY -----	5
SECTION 6.2.	NOTICE AND DISCUSSION-----	5
A R T I C L E VII	GRIEVANCE PROCEDURE -----	5
SECTION 7.1.	DEFINITION AND PROCEDURE -----	5
SECTION 7.2.	TIME LIMIT FOR FILING -----	7
SECTION 7.3.	TIME OFF -----	7
SECTION 7.4.	RESPONSE AT EACH STEP -----	7
SECTION 7.5.	BINDING ARBITRATION -----	8
A R T I C L E VIII	RESIDENCY -----	9
SECTION 8.1.	RESIDENCY -----	9
A R T I C L E IX	NO STRIKE AND NO LOCKOUT -----	9
SECTION 9.1.	NO STRIKE -----	9
SECTION 9.2.	PENALTY -----	9
SECTION 9.3.	NO LOCKOUT-----	10
SECTION 9.4.	LABOR COMMITTEE OFFICIAL RESPONSIBILITY -----	10
A R T I C L E X	VACATION AND HOLIDAYS -----	10
SECTION 10.1.	AMOUNT OF VACATION AND HOLIDAYS EARNED -----	10
SECTION 10.2.	VACATION/HOLIDAY -----	11
SECTION 10.3.	PERSONAL LEAVE DAY -----	11
SECTION 10.4.	HOLIDAY BANKING/BUYBACK-----	12
SECTION 10.5.	HOLIDAY SELECTION: ELECTED LABOR COMMITTEE OFFICERS.-----	12

SECTION 10.6.	COMPENSATION FOR WORKING HOLIDAYS -----	13
ARTICLE XI	LABOR-MANAGEMENT AND SAFETY MEETINGS-----	13
ARTICLE XII	HOURS OF WORK AND OVERTIME-----	13
SECTION 12.1.	APPLICATION OF ARTICLE-----	13
SECTION 12.2.	NORMAL WORKWEEK, WORKDAY AND WORK CYCLE -----	13
SECTION 12.3.	PATROL DIVISION WORK SCHEDULE-----	14
SECTION 12.4.	POWER SHIFT SCHEDULE -----	15
SECTION 12.5.	SPECIAL DIVISION WORK SCHEDULE-----	17
SECTION 12.6.	CHANGES IN NORMAL WORKWEEK AND WORKDAY -----	18
SECTION 12.7.	OVERTIME PAY -----	18
SECTION 12.8.	COMPENSATORY TIME -----	18
SECTION 12.9.	COURT TIME-----	19
SECTION 12.10.	REGULAR MONTHLY COURT DATE -----	19
SECTION 12.11.	CALL-BACK PAY -----	19
SECTION 12.12.	VOLUNTARY OVERTIME SIGN-UP PROCEDURE-----	20
SECTION 12.13.	REQUIRED OVERTIME -----	20
SECTION 12.14.	PRISONER GUARD DUTY PROTOCOL -----	21
SECTION 12.15.	FATIGUE MANAGEMENT -----	21
SECTION 12.16.	KELLY TIME -----	22
ARTICLE XIII	EMPLOYEE DISCIPLINE -----	24
SECTION 13.1.	CITY'S RIGHT TO DISCIPLINE-----	24
SECTION 13.2.	CONDUCT OF DISCIPLINARY INVESTIGATIONS -----	24
SECTION 13.3.	DEFINITIONS-----	24
SECTION 13.4.	PLACE OF INTERROGATION -----	25
SECTION 13.5.	DISCLOSURE OF INFORMATION TO SUBJECT OF INTERROGATION REGARDING NATURE OF INVESTIGATION AND COMPLAINANTS -----	25
SECTION 13.6.	TIME OF INTERROGATION-----	25
SECTION 13.7.	DISCLOSURE TO SUBJECT OF INTERROGATION OF OFFICER IN CHARGE, INTERROGATORS AND OTHERS PRESENT -----	26
SECTION 13.8.	DURATION OF INTERROGATION SESSIONS -----	26
SECTION 13.9.	ABUSIVE AND OFFENSIVE LANGUAGE PROHIBITED AT INTERROGATION-----	26
SECTION 13.10.	RECORD OF INTERROGATION--TRANSCRIPT-----	26
SECTION 13.11.	ADVICE OF RIGHTS -----	26
SECTION 13.12.	PRESENCE OF COUNSEL OR REPRESENTATIVE OF COLLECTIVE BARGAINING UNIT -----	26
SECTION 13.13.	ADMISSIONS OR CONFESSIONS OBTAINED IN VIOLATION OF THIS ARTICLE-----	27
SECTION 13.14.	POLYGRAPH OR CHEMICAL TESTS-----	27

SECTION 13.15.	CONSTITUTIONAL AND LEGAL RIGHTS-----	27
SECTION 13.16.	APPLICATION OF ARTICLE-----	27
SECTION 13.17.	RETALIATORY ACTIONS PROHIBITED -----	27
SECTION 13.18.	CORRECTIVE DISCIPLINE -----	28
SECTION 13.19.	PRESENCE OF LABOR COMMITTEE REPRESENTATIVE AT OTHER TIMES-	28
SECTION 13.20.	EMPLOYEE PHOTOS -----	28
SECTION 13.21.	USE OF MOBILE AUDIO-VISUAL SYSTEMS -----	28
SECTION 13.22.	BODY WORN CAMERA-----	29
A R T I C L E XIV	TRAINING-----	34
SECTION 14.1.	GENERAL POLICY -----	34
SECTION 14.2.	ACCESS-----	34
SECTION 14.3.	POSTING -----	34
SECTION 14.4.	CONFERENCE AND TRAVEL-----	35
SECTION 14.5.	TUITION REIMBURSEMENT -----	35
SECTION 14.6.	FIELD TRAINING OFFICER PAY -----	36
SECTION 14.7.	INTERN SCHEDULED AND ELIGIBILITY -----	36
A R T I C L E XV	SENIORITY, LAYOFF AND RECALL -----	37
SECTION 15.1.	SENIORITY DEFINED -----	37
SECTION 15.2.	APPLICABILITY OF SENIORITY -----	37
SECTION 15.3.	SENIORITY LIST -----	37
SECTION 15.4.	TERMINATION OF SENIORITY-----	38
SECTION 15.5.	PROMOTION-----	38
SECTION 15.6.	SHIFT ASSIGNMENTS-----	39
SECTION 15.7.	LAYOFF AND RECALL -----	39
A R T I C L E XVI	LABOR COMMITTEE BULLETIN BOARD-----	40
SECTION 17.1.	INSPECTION-----	40
SECTION 17.2.	COMPLIMENTARY OR DEROGATORY-----	41
SECTION 17.3.	DESTRUCTION OF FILES -----	41
A R T I C L E XVIII	LEAVES -----	41
SECTION 18.1.	DEATH IN FAMILY -----	41
SECTION 18.2.	LEAVE OF ABSENCE -----	42
SECTION 18.3.	LEAVE FOR ILLNESS, INJURY OR PREGNANCY-----	42
SECTION 18.4.	INJURY ON THE JOB ("IOD") OR OCCUPATIONAL DISEAS LEAVE-----	43
SECTION 18.5.	ALTERNATIVE DUTY- NON-DUTY ILLNESSES AND INJURIES. -----	43
A R T I C L E XIX	SICK LEAVE-----	43
SECTION 19.1.	AMOUNT OF LEAVE-----	43
SECTION 19.2.	USAGE -----	43

SECTION 19.3.	DOCTOR'S SLIP -----	44
SECTION 19.4.	ACCUMULATION: OFFICERS HIRED ON OR BEFORE MARCH 31, 1995 -----	44
SECTION 19.5.	ACCUMULATION: OFFICERS HIRED ON OR AFTER APRIL 1, 1995 -----	44
A R T I C L E XX	INOCULATIONS AND FUNERAL EXPENSES -----	45
SECTION 20.1.	INOCULATIONS -----	45
SECTION 20.2.	FUNERAL EXPENSES -----	45
A R T I C L E XXI	REPRESENTATIVES' RIGHTS -----	45
SECTION 21.1.	ATTENDANCE AT UNION/LABOR COMMITTEE MEETINGS -----	45
SECTION 21.2.	EXAMINATION OF RECORDS -----	45
A R T I C L E XXII	INSURANCE -----	46
SECTION 22.1.	COMPREHENSIVE MAJOR MEDICAL PLAN -----	46
SECTION 22.2.	PREFERRED PROVIDER ORGANIZATION (PPO) -----	46
SECTION 22.3.	PREMIUM ALLOCATION -----	46
SECTION 22.4.	COST CONTAINMENT -----	46
SECTION 22.5.	SECOND OPINION -----	47
SECTION 22.6.	TERMS OF INSURANCE POLICIES TO GOVERN -----	47
SECTION 22.7	LIFE INSURANCE -----	47
SECTION 22.8.	POLICY CHANGE -----	47
SECTION 22.9	HEALTH INSURANCE BUYOUT -----	48
A R T I C L E XXIII	STIPENDS AND UNIFORM ALLOWANCE -----	49
SECTION 23.1.	GENERAL REQUIREMENTS. -----	49
SECTION 23.2.	AMOUNT OF ALLOWANCE. -----	49
SECTION 23.3.	SPECIALTY STIPEND -----	49
SECTION 23.4.	SPECIALTY STIPEND DETECTIVES -----	50
SECTION 23.5.	SPECIALTY STIPEND SPANISH INTERPRETER -----	50
SECTION 23.6	SPECIALTY STIPEND NON-SPANISH INTERPRETER -----	50
SECTION 23.7.	SPECIALTY STIPEND K-9 OFFICERS -----	50
SECTION 23.8.	CRISIS INTERVENTION TRAINING STIPEND. -----	50
SECTION 23.9.	NEW OFFICERS -----	50
A R T I C L E XXIV	DRUG AND/OR ALCOHOL TESTING -----	51
SECTION 24.1.	PHYSICAL EXAMINATION REQUIREMENT -----	51
SECTION 24.2.	LABOR COMMITTEE REPRESENTATION -----	51
SECTION 24.3.	SECOND TEST -----	51
SECTION 24.4.	HANDLING OF SAMPLE. -----	52
SECTION 24.5.	SECOND TEST AND DISCIPLINE -----	52
SECTION 24.6.	ALCOHOL. -----	52
SECTION 24.7.	RANDOM TESTING -----	52

SECTION 24.8.	RANDOM SELECTION -----	52
SECTION 24.9.	TESTING FOR SPECIALIZED UNITS. -----	53
SECTION 24.10.	TESTING FOR PROMOTIONS. -----	53
SECTION 24.11.	CONFIDENTIALITY -----	53
SECTION 24.12.	PAYMENT FOR TESTING -----	53
SECTION 24.13.	CONSTITUTIONAL RIGHTS. -----	53
A R T I C L E XXV	FITNESS -----	53
SECTION 25.1	MEDICAL EXAMINATIONS -----	53
SECTION 25.2.	PHYSICAL FITNESS -----	53
SECTION 25.3.	TESTING STANDARDS -----	54
SECTION 25.4.	TESTING OF EMPLOYEES -----	54
SECTION 25.5.	THE PHYSICAL FITNESS TEST -----	54
SECTION 25.6.	MONITORING TEST PROCEDURE -----	54
SECTION 25.7.	COMPENSATION FOR TEST PROCEDURE. -----	55
SECTION 25.8.	WORKOUT FACILITY -----	55
SECTION 25.9.	NO DISCIPLINE -----	55
A R T I C L E XXVI	WAGES -----	55
SECTION 26.1.	WAGE SCALE -----	55
SECTION 26.2	LONGEVITY -----	56
SECTION 26.3.	LATERAL TRANSFERS -----	56
SECTION 26.4.	SALARY EFFECTIVE FY 2022 - MAY 1, 2022, TO APRIL 30, 2023 -----	56
SECTION 26.5.	SALARY EFFECTIVE FY 2023 - MAY 1, 2023, TO APRIL 30, 2024 -----	57
SECTION 26.6.	SALARY EFFECTIVE FY 2024 - MAY 1, 2024 TO APRIL 30, 2025 -----	57
SECTION 26.7.	SALARY EFFECTIVE FY 2025 - MAY 1, 2025 TO APRIL 30, 2026 -----	57
SECTION 26.8.	PENSION CONTRIBUTIONS -----	57
SECTION 26.9.	RETROACTIVITY -----	58
A R T I C L E XXVII	REOPENER -----	58
A R T I C L E XXVIII	SAVING CLAUSE -----	58
A R T I C L E XXIX	ENTIRE AGREEMENT -----	59
A R T I C L E XXX	TERMINATION -----	60
SECTION 30.1.	TERMINATION IN 2026 -----	60
SECTION 30.2.	NOTICE OF TERMINATION -----	60
APPENDIX "A"	Check Off Dues Authorization -----	61
APPENDIX "B"	PBLC Hireback and Forced Hireback Procedure -----	62
APPENDIX "C"	-----	65

P R E A M B L E

This Agreement is entered into this ____ day of July 2023 between the City of Waukegan (the "City") and the Waukegan Police Benevolent Labor Committee, unit #42 (the "Labor Committee" "or Union"), upon approval of a majority of Waukegan's Police Officers covered by this Agreement. The City of Waukegan agrees that this agreement will be retroactive to May 1, 2022 through April 30, 2026.

WHEREAS, the City, by ordinance, has voluntarily endorsed the practices and procedures of collective bargaining as a fair and orderly way of conducting its relations with certain of its full-time employees and to make clear the basic terms upon which such relationship depends; and

WHEREAS, it is the intent and purpose of the parties to set forth herein their agreement covering rates of pay, wages, hours of employment and all other conditions of employment; and to provide the procedures for the prompt and peaceful settlement of grievances respecting the terms of this Agreement;

NOW, THEREFORE, in consideration of the mutual promises and agreements herein contained, the parties do mutually promise and agree as follows:

ARTICLE II

RECOGNITION

SECTION 2.1. RECOGNITION

The City recognizes the Waukegan Police Benevolent Labor Committee, unit #42 ("Labor Committee") as the sole and exclusive collective bargaining representative for all sworn police officers (here and after referred to as "officers" or "employees"), but excluding all supervisory employees (because of the unique work duties and responsibilities in Waukegan this includes all officers of the rank of Sergeant and above) and all other supervisory and non-supervisory employees of the Department and City.

SECTION 2.2. PROBATIONARY PERIOD

The probationary period shall be eighteen (18) months in duration, which shall include not less than one hundred twenty-five (125) "solo status" workdays performed by the probationary officer. During the probationary period, an officer is entitled to all rights, privileges, or benefits under this Agreement, except as follows:

1. The City may suspend or discharge a probationary officer without cause and such officer shall have no recourse to the grievance procedure to contest such suspension or discharge.
2. The City will deny any request for benefit time, other than sick leave, for Probationary Police Officers regularly scheduled to work a shift beginning on: July 4, Thanksgiving Day, Christmas Eve, Christmas Day, New Year's Eve.

SECTION 2.3. FAIR REPRESENTATION

The Labor Committee recognizes its responsibility as bargaining agent and agrees fairly to represent all employees in the bargaining unit, whether or not they are members of the Labor Committee.

SECTION 2.4. LABOR COMMITTEE OFFICERS

For the purposes of this Agreement, Labor Committee Officers shall mean the duly elected or appointed officers of the Executive Board. Labor Committee Representatives shall be the duly appointed shift representatives and labor committee trustees.

ARTICLE III

NO DISCRIMINATION

SECTION 3.1. DISCRIMINATION PROHIBITED

Neither the City nor the Labor Committee shall discriminate against any employee covered by this Agreement in a manner which would violate any applicable laws because of race, creed, color, national origin, age or sex.

SECTION 3.2. LABOR COMMITTEE MEMBERSHIP OR ACTIVITY

Except as otherwise provided herein, neither the City nor the Labor Committee shall interfere with the right of employees to become or not become members of the Labor Committee, and there shall be no discrimination against any such employees because of lawful Labor Committee membership or non-membership activity or status.

SECTION 3.3. GENDER

Whenever the male gender is used in this Agreement, it shall be construed to include equally both male and female employees.

ARTICLE IV

DUES CHECKOFF

SECTION 4.1. DUES DEDUCTIONS

During the term of this Agreement, the City will deduct once each pay day a fixed, uniform dollar amount which shall be considered the regular monthly Union dues of each Union member for whom there is on file with the City a voluntary, effective checkoff authorization in the form set forth in Appendix A to this Agreement. The amount so deducted shall be forwarded each pay period to the appropriate officer of the Union, together with a list of names for whom deductions have been made. If the employee has no earnings due for that pay period, the Union shall be responsible for collecting such dues. Dues shall be sixty-five dollars (\$65) per month. This shall be divided evenly by the officer's twenty-six (26) pay periods.

The Union agrees to refund to the City any amount paid to the Union in error on account of this dues deduction provision. The Union may change the fixed, uniform dollar amount which

shall be considered the regular monthly Union dues twice during the life of this Agreement. The Union will give the City thirty (30) days' notice of any such change in the amount of uniform Union dues to be deducted.

SECTION 4.2. INDEMNIFICATION

The Union agrees to defend, indemnify and save the City harmless against any and all claims, demands, suits or other forms of liabilities that shall arise out of or by reason of action taken or not taken by the City for the purpose of complying with any of the provisions of this Article.

ARTICLE V

MANAGEMENT RIGHTS

Except as specifically limited by the express provisions of the Agreement or specific Civil Service Rules and Regulations, the City retains all traditional rights to manage and direct the affairs of the Police Department in any and all of its various aspects, and to manage and direct its employees in the Department, including, but not limited to, the following: to plan, direct, control and determine all the operations and services of the Department; to supervise and direct the Department's workforce; to establish the qualifications for employment and to employ employees; to schedule and assign work; to establish work and productivity standards and, from time to time, to change those standards; to assign overtime; to determine the methods, means, organization and number of personnel by which such departmental operations and services shall be conducted or purchased; to make, enforce and alter reasonable work rules and regulations; to discipline, suspend or discharge employees for just cause (termination solely on account of political activity or inactivity shall not constitute just cause) pursuant to applicable Rules and Regulations of the Waukegan Civil Service Commission (probationary employees may be suspended or discharged without cause); and to change or eliminate existing methods, equipment or facilities; provided, however, that the exercise of the above rights shall not conflict with any express written provisions of this Agreement.

ARTICLE VI

SUBCONTRACTING

SECTION 6.1. GENERAL POLICY

It is the general policy of the City to continue to utilize its officers to perform work they are qualified to perform. However, the City reserves the right to contract out any work it deems necessary in the interests of efficiency, economy, improved work product or emergency.

SECTION 6.2. NOTICE AND DISCUSSION

Except where an emergency situation exists, before the City changes its policy involving the subcontracting of work, where such policy change amounts to a deviation from past practice which will result in the loss of significant, not de minimis, amount of work being performed by bargaining unit members or will result in a layoff of one or more employees, the City will give reasonable notification to the Labor committee (not less than twenty-one (21) days prior to any subcontracting of work) and offer the Labor Committee, prior to the subcontracting of such work, in good faith, the opportunity to discuss the desirability or alternatives to the subcontracting of such work.

ARTICLE VII

GRIEVANCE PROCEDURE

SECTION 7.1. DEFINITION AND PROCEDURE

A grievance is a dispute or difference of opinion raised by an employee covered by this Agreement against the City or by the Labor committee against the City involving the meaning, interpretation or application of the express provisions of this Agreement, except that matters concerning the discipline of an officer are not grievable except as follows: (1) any discipline short of discharge, demotion, or suspension may be grieved through but not beyond step 4 of the grievance procedure if a request for a civil service hearing has not been made. A grievance shall be processed in the following manner:

STEP 1: Any employee or the Labor committee who has a grievance shall submit it, designated as a grievance, to the employee's immediate supervisor, who is designated for this purpose by the City. In the event the incident giving rise to the grievance is initiated by a

supervisor of a higher rank than the immediate supervisor, the grievance shall start at that step. The Supervisor shall give the employee or the Labor Committee, if a Labor Committee grievance, an oral answer within three (3) working days of such presentation, and a written answer within five (5) working days, if requested by the employee or the Labor Committee after the oral answer.

STEP 2: If the grievance is not settled in Step 1 and the employee or the Labor Committee wishes to advance the grievance to Step 2 of the grievance procedure, it shall be referred in writing to the employee's shift commander within five (5) calendar days after the supervisor's oral answer or answers due in Step 1 and shall be signed by the employee or the Labor Committee. If the grievance is initiated by a probationary employee, the grievance must be signed by a Labor Committee Officer before being submitted to Step 2. The written grievance shall contain a complete statement of the facts, the provision or provisions of this Agreement which the City is alleged to have violated and the relief requested. The shift commander or other person designated for this purpose shall discuss the grievance within five (5) calendar days with the employee or the Labor Committee. If no settlement is reached, the shift commander or other person designated for this purpose shall provide the employee or the Labor Committee a written answer within five (5) calendar days following their meeting.

STEP 3: If the grievance is not settled in Step 2 and the employee, or the Labor Committee if a Labor Committee grievance, wishes to appeal the grievance to Step 3 of the grievance procedure, it shall be referred in writing to the Chief of Police or other person designated for this purpose by the Police Chief within five (5) calendar days after the supervisor's answer in Step 2 and shall be signed by both the aggrieved employee and a Labor Committee Officer. If the aggrieved employee fails to secure the written signature of a Labor Committee Officer the grievance will be considered closed and the determination specified in Step 2 shall stand. The Chief of Police or other person designated for this purpose shall discuss the grievance within five (5) calendar days with the employee and a Labor Committee representative, or with the Labor Committee if a Labor Committee grievance, at a time mutually agreeable to the parties. The Chief of Police or other person designated for this purpose shall give the City's written answer to the employee or the Labor Committee within five (5) calendar days following their meeting.

STEP 4: If the grievance is not settled in Step 3 and the employee or the Labor Committee wishes to appeal the grievance to Step 4 of the grievance procedure, it shall be referred in writing to the Mayor or his designee (who shall not be a member of the Police Department) within five

(5) calendar days after the City's answer in Step 3 and shall be signed by both the employee and a Labor Committee representative, or the Labor Committee if a Labor Committee grievance. The Mayor and/or his designee shall discuss the grievance within five (5) calendar days with the employee and the Labor Committee representative, or with the Labor Committee if a Labor Committee grievance, at a time mutually agreeable to the parties. If no settlement is reached, The Mayor or his designee shall give the City's written decision to the Labor Committee within ten (10) calendar days following their meeting.

SECTION 7.2. TIME LIMIT FOR FILING

No grievance shall be entertained or processed unless it is submitted at Step 1 within seven (7) calendar days after the occurrence of the event giving rise to the grievance or within seven (7) calendar days after the employee, or the Labor Committee if a Labor Committee grievance, through the use of reasonable diligence, should have obtained knowledge of the occurrence of the event giving rise to the grievance. This limit may be extended by three (3) days upon a reasonable show of cause by grievant, or by the Labor Committee if a Labor Committee grievance. If a grievance is not presented within the time limits set forth above, it shall be considered "waived." If a grievance is not appealed to the next step within the specified time limit or any agreed extension thereof, it shall be considered settled on the basis of the City's last answer. If the City does not answer a grievance or an appeal thereof within the specified time limits, the aggrieved employee and/or the Labor Committee may elect to treat the grievance as denied at that Step and immediately appeal the grievance to the next Step.

SECTION 7.3. TIME OFF

The grievant and one Labor Committee representative, or a Labor Committee representative if a Labor Committee grievance, shall be given paid time off to participate in the Step 3 or 4 meetings if the meetings are conducted on working time. No other time spent on grievance matters shall be considered time worked for compensation purposes.

SECTION 7.4. RESPONSE AT EACH STEP

It is understood that both the City and the employee, or the Labor Committee if a Labor Committee grievance, must assume responsibility for extending to the other party a response at each step of the grievance procedure. Failure to do so shall cause the action of the last completed step to stand.

SECTION 7.5. BINDING ARBITRATION

If the grievance is not settled in Step 4 and the employee wishes to appeal the grievance to Step 5 of the grievance procedure, the Labor Committee may refer the grievance to final and binding arbitration as described below within ten (10) work days after the decision is provided at the Fourth Step.

1. The parties shall attempt to agree upon an arbitrator within five (5) workdays after receipt of the notice of referral. In the event the parties are unable to agree upon the arbitrator within said five (5) work day period, the parties shall immediately jointly request the Federal Mediation and Conciliation Service to submit a panel of five (5) arbitrators who are members of the National Academy of Arbitrators. Each party retains the right to reject one panel in its entirety and request that a new panel is submitted. Both the Labor Committee and the City shall have the right to strike two (2) names from the panel. The party requesting final and binding arbitration shall strike the first two (2) names; the other party shall then strike two names. The person remaining shall be the arbitrator.
2. The arbitrator shall be notified of his/her selection and shall be requested to set a time and place for the hearing, subject to the availability of Labor Committee and City representatives.
3. The City or the Labor Committee shall have the right to request the arbitrator to require the presence of witnesses or documents. The City and the Labor Committee retain the right to employ legal counsel.
4. The arbitrator shall submit his/her findings in writing thirty (30) days following the close of the hearing or the submission of briefs by the parties, whichever is later.
5. More than one grievance may be submitted to the same arbitrator if both parties mutually agree in writing.
6. The fees and expenses of the arbitrator and the cost of a written transcript shall be divided equally between the City and the Labor Committee; provided, however, that each party shall be responsible for compensating its own representatives and witnesses.
7. The arbitrator shall have no right to amend, modify, nullify, ignore, add to, or subtract from the provisions of this Agreement. The arbitrator shall consider and decide only the question of fact as to whether there has been a violation, misinterpretation, or

misapplication of the specific provisions of this Agreement. The arbitrator shall be empowered to determine the issue raised by the grievance as submitted in writing by both parties at the Third Step. The arbitrator shall have no authority to make a decision on any issue not so submitted or raised. The arbitrator shall be without power to make a decision which violates applicable federal/state law. The findings of the arbitrator shall be final and binding upon the City and the Labor Committee.

For purposes of this Article, Civil Service laws, rules and regulations shall not be considered part of state law.

ARTICLE VIII

RESIDENCY

SECTION 8.1. RESIDENCY

There shall be no residency requirement for Waukegan Police Officers covered by this Agreement.

ARTICLE IX

NO STRIKE AND NO LOCKOUT

SECTION 9.1. NO STRIKE

During the life of this Agreement, neither the Labor Committee nor any officers, agents, or employees will instigate, promote, sponsor, engage in, or sanction any strike (including sympathy strike), slowdown, concerted stoppage of work, or any other intentional disruption of the operations of the City, regardless of the reason for so doing.

SECTION 9.2. PENALTY

Any employee engaged in activity prohibited by Section 9.1., or who instigates or gives leadership to such activity, shall be subject to disciplinary action in accordance with Section 3 of Ordinance 78-O-109 as adopted on July 5, 1978.

SECTION 9.3. NO LOCKOUT

During the term of this Agreement, the City will not instigate a lockout over a dispute with the Labor Committee as long as there is no breach of Section 9.1. sanctioned by the Labor Committee.

SECTION 9.4. LABOR COMMITTEE OFFICIAL RESPONSIBILITY

Each employee who holds the position of officer or representative of the Labor Committee occupies a position of special trust and responsibility in maintaining and bringing about compliance with the provisions of this Article. In the event of a violation of Section 9.1. of this Article, the Labor Committee agrees to inform its members of their obligations under this agreement and use its best efforts to achieve a prompt resumption of normal operations.

ARTICLE X

VACATION AND HOLIDAYS

SECTION 10.1. AMOUNT OF VACATION AND HOLIDAYS EARNED

Officers covered by this agreement shall receive vacations and holidays as stated below:

After 1 year & 1 day: 80 hours vacation, 80 hours holiday, and extra holiday as follows: 16 extra holiday hours for non-patrol, 20 extra holiday hours for Officers working four (4) 10-hour days per workweek; and 24 extra holiday hours for 12-hour patrol shift Officers; for a total of vacation and holiday hours of 176 hours, 180 hours, and 184 hours respectively.

After 7 years & 1 day: Same as above with the addition of 40 hours vacation for a total of vacation and holiday hours of 216 hours, 220 hours, and 224 hours respectively.

After 11 years & 1 day: Same as above with the addition of 56 hours vacation for a total of vacation and holiday hours of 232 hours, 236 hours, and 240 hours respectively.

After 15 years & 1 day: Same as above with the addition of 80 hours vacation; for a total of vacation and holiday hours of 256 hours, 260 hours, and 264 hours respectively.

Extra holidays will be a full shift regardless of assignment at the time they are used. If an Officer elects to save their time, they understand they run the risk of either decreasing or increasing these banks depending on transfer or assignment opportunity.

The parties mutually recognize and agree the benefits provided in this Agreement are more generous than the benefits required by the Illinois Paid Leave for All Workers Act, S.B. 0208.

Pursuant to Section 15(n) of that Act, the parties voluntarily waive the benefits provided under that Act in favor of the benefits provided under this bargaining agreement.

SECTION 10.2. VACATION/HOLIDAY

Officers shall select the initial period(s) of their annual vacation/holidays on the basis of seniority and such selection shall be made within a reasonable period of time after the vacation/holiday list is initially posted. Officers shall not take more than two (2) calendar weeks' vacation/holidays or eighty-four (84) hours if assigned to the Patrol Division and working the 12 hour schedule upon their initial pick when the vacation/holiday list is posted.

Once all employees' on that shift have selected their initial two (2) weeks or eighty-four (84) hours, all remaining vacation/holidays shall be selected on the basis of seniority. Once vacation periods are established, seniority shall not be used to bump into another officer's vacation period. However, in the event an officer is transferred to a different unit or the officer's days off are permanently changed, the City will make a reasonable effort to accommodate the vacation period initially chosen by the officer.

Absent a City Declared State of Emergency, vacation or holiday time will not be changed except upon request of the officer; if scheduling allows for the change, the request will be brought to the attention of the shift Commander or his/her designee, and such request will not be denied for arbitrary or capricious reasons.

Vacations may be cut short and the remainder of time can be banked by the employee, but must be used by the end of the fiscal year.

SECTION 10.3. PERSONAL LEAVE DAY

Each police officer shall be entitled to two personal leave days annually to be taken with a minimum of forty-eight (48) hours' notice to his/her supervisor. No more than two (2) officers on a patrol division shift will be granted a Personal Day on any one given day. Disputes concerning priority for receipt of personal leave days shall be resolved on a first-requested, first-received basis, except that if two requests for the same day are received simultaneously, then seniority shall be the deciding factor. Personal leave days shall be taken during the year allowed and shall not accumulate. For purposes of this Agreement a "personal day" shall mean a full working shift regardless of assignment.

SECTION 10.4. HOLIDAY BANKING/BUYBACK

Officers may bank their twelve (12) holidays or ninety-six (96) hours of holiday time. Officers may pick their two (2) extra holiday days or sixteen hours (16) for 8-hour shift officers or twenty-four (24) hours for 12-hour shift officers during their vacation picks or bank them as well. Should an officer assigned to the 12-hour schedule elect to bank their extra holidays they can only bank sixteen (16) hours for buyback purposes. Officers may schedule their banked days or time as individual days but must give seventy-two (72) hour notice and are subject to denial if the request brings the assigned shift below minimum staffing levels as covered under Section 12.3.

Officers have the option of having the City "buyback" up to eighty (80) hours of unused holiday time. Officers will have the first opportunity to sell back holiday time beginning May 1st. Any unused holiday time will automatically be bought back, at the Officer's base hourly rate of pay, by the City, up to eighty (80) hours, on April 30th of each fiscal year.

Absent a City Declared State of Emergency, holiday time or days once scheduled will not be changed except upon request of the officer; if scheduling allows for the change, the request will be brought to the attention of the shift Commander or his/her designee, and such request will not be denied for arbitrary or capricious reasons.

SECTION 10.5. HOLIDAY SELECTION: ELECTED LABOR COMMITTEE OFFICERS.

Elected Union/Labor Committee Officers (composing the Executive Board) shall be entitled to select holiday time off in any increment. Such time off should be selected at the beginning of the fiscal year. The City agrees to allow elected Union/Labor Committee officers to reselect desired holiday time off during the year with forty-eight (48) hours prior notice, provided such reselection does not adversely impact the operations of the Department. Nothing in this Section limits the amount of holiday time off provided in Section 10.1., nor prohibits the elected Union/Labor Committee Officer from scheduling holiday time off in five day increments as required of other members of the Union/Labor Committee. Labor Committee Officers are identified as the Labor Committee President, the Labor Committee First and Second Vice-Presidents, the Labor Committee Treasurer, the Labor Committee Secretary, and the Labor Committee Sergeant-At-Arms.

SECTION 10.6. COMPENSATION FOR WORKING HOLIDAYS

Officers who are scheduled to work the duty shift starting on Independence Day and/or Christmas Day shall be paid at the rate of one and one-half (1 ½) their regular straight-time rate of pay for all such hours worked. Officers who are not scheduled to work but are called in or forced to work on Independence Day and/or Christmas Day shall be paid at the rate of two (2) times their regular straight-time rate of pay for all such hours worked.

A R T I C L E X I

LABOR-MANAGEMENT AND SAFETY MEETINGS

Representatives of the Labor Committee, not to exceed six (6) in number, and of the City shall meet at mutually agreed-upon times to discuss matters of mutual concern relating to the interpretation, application or administration of this Agreement, existing work rules, issues of safety and health or issues pertaining to court attendance during off duty hours by police officers. The party requesting the meeting shall prepare and submit an agenda to the other party three (3) days prior to the scheduled meeting.

A R T I C L E X I I

HOURS OF WORK AND OVERTIME

SECTION 12.1. APPLICATION OF ARTICLE

This Article is intended only as a basis for calculating overtime payments, and nothing in this Agreement shall be construed as a guarantee of hours of work per day or per week.

SECTION 12.2 NORMAL WORKWEEK, WORKDAY AND WORK CYCLE

Except as provided elsewhere in this Agreement, the normal workweek and work cycle (Sunday through Saturday) for employees working eight (8) hour shifts shall consist of forty (40) hours per Departmental calendar week. The normal workweek for such personnel shall consist of five (5) eight (8) hour workdays in a Departmental calendar 7 day week with no specific provisions for breaks. The normal work cycle for officers assigned to patrol will consist of seven (7) twelve (12) hour work shifts every two weeks.

Officers working a 10-hour or 12-hour shift shall be assigned a forty-five (45) minute paid lunch break. Officers working a 6-hour or an 8-hour shift will be assigned a thirty (30) minute

lunch break. Officers will also be given fifteen (15) minutes in addition to the break period mentioned above, for travel time to and from their chosen destination. If an officer is scheduled to work a 10-hour or 12-hour shift and uses benefit time at the beginning or end of his/her shift, said Officer will still be provided with the thirty (30) minute paid lunch break. If an Officer chooses to partake in physical exercise while on lunch break, he/she may choose to extend their respective lunch break by an additional thirty (30) minutes. If such lunch period is interrupted and cannot be reassigned, the Officer will be compensated for such interruption with compensatory time, except for any additional time for workout shall not be compensable.

SECTION 12.3. PATROL DIVISION WORK SCHEDULE

Patrol shall work hours based on a twelve (12) hour shift schedule. Each shift will consist of two day off groups, Group 1 and Group 2, which will each be divided into subgroups D1 and D2, and N1 and N2. These subgroups will be chosen by seniority, subject to Section 15.6 of this Agreement. Officers will be allowed to pick their subgroup shifts every year in April. Shift hours will be from 0600-1800 for shift D and 1800-0600 for shift N. Three (3) officers from the day shift may be scheduled to report one (1) hour early and end one (1) hour early. The afternoon shift may have four (4) officers report one (1) hour early and end one (1) hour early; such early car assignments will be reviewed by the PBLC, unit #42 and the City quarterly as to its efficiency and effectiveness. Early car assignments will be chosen yearly by seniority, subject to Section 15.6 of this Agreement.

Group D1 and N1 officers will work Monday and Tuesday and be off on Wednesday and Thursday. Group D1 and N1 officers will then work Friday, Saturday and Sunday and be off on Monday and Tuesday. Group D1 and N1 officers will then work Wednesday and Thursday and off on Friday, Saturday and Sunday before beginning the cycle again. Group D2 and N2 will work on days that Group D1 and N1 are off and vice versa.

Officers can request to trade shifts within a pay period of equal time, and such request will not be denied by the shift Commander or designee for arbitrary or capricious reasons. Time trades must be requested with seventy-two (72) hour notice.

Minimum staffing levels or "shift minimum" shall be a minimum of twelve (12) officers for the day shift and fourteen (14) officers for the night shift. Shifts will not otherwise go below minimum staffing levels except for one officer below minimum when sick leave is requested with less than 24-hours notice ("Sick Exception"). In the event, shift minimums is not reached, the City will be required to staff according to that minimum. Shift minimum will reviewed at weekly labor-

management meetings, any changes may be instituted upon mutual agreement between the Chief of Police and the Union.

Unless a "sick exception" is being utilized, nothing within this section shall be construed to prevent the Chief of Police from directing officers to assignments that meet the operational needs of the City, as determined by the Chief or his/ her designee in the exercise of his/ her discretion. This may include, for example, assigning a roaming car, assigning cars to a "hot spot" within the City, and other operational needs. If a "sick exception" is being utilized, patrolmen assigned to work that patrol shift shall not be used for Major Crime Scene Unit or Major Crash Scene Unit, but nothing prevents the City from using on-duty personnel to staff these incidents while calling out the specialty units and waiting for personnel to arrive.

SECTION 12.4. POWER SHIFT SCHEDULE

The hours will be from 1530 hours to 0330 hours and consist of officers assigned to the Patrol Division Night Shift. Both Night Shifts (N1 & N2) will designate six (6) Primary Officers and four (4) Alternate Officers as Power Shift officers. Effective May 1, 2018, seventeen (17) Patrolmen shall be assigned to each day shift. When such scheduling is in place, the power shift staffing on each shift may be reduced to five (5) Primary officers and four (4) Alternate Officers as Power Shift officers.

Power Shift officers will continue to follow the normal work day rotation of their designated night shift assignment (N1/N2). Primary officers' work days will begin at 1530 hours and end at 0330 hours. Alternate officers will be considered "fill in" officers. Alternate officers will work a regular 12-hr night shift schedule (1800 hours to 0600 hours). In the event that Power Shift staffing drops below the minimum level of four (4) Primary officers, Alternate officers may be required to adjust their hours to that of the Power Shift (1530 hours to 0330 hours). The City will make every effort to provide the Alternate officers with a reasonable notice of such change. If the Power Shift cannot be brought up to the minimum of four (4) officers, by use of both Primary and Alternate officers, then all procedures, within the current CBA between the City of Waukegan and PBLU Unit #42, will be followed to insure the Power Shift is staffed with the minimum of four (4) officers.

Patrol Shift Minimum Staffing levels, as well as the procedures in which shift staffing is maintained, will remain as outlined in Article 12 of the current CBA. A minimum of twelve (12) officers must be assigned to work every day during Day Shift hours (0500-1800) and a minimum of fourteen (14) officers must be assigned to work every day during Night Shift hours (1800-0600). Night Shift (N1 & N2), for purposes of minimum staffing levels, will also include those officers designated or working the Power Shift hours. Power Shift officers working their regularly

scheduled shift will never be included in the Day Shift (D1 & D2) minimum staffing and will always be in addition to said staffing.

Upon implementation of the Power Shift, the PBLC Unit #42 agrees to allow Minimum Staffing levels, between the hours of 0330-0500 to drop to a Target Staffing level of ten (10) officers. In the event of last minute unforeseen circumstances where the ten (10) officer minimums cannot be attained, the minimum will be allowed to drop to the level of nine (9) officers. Under no circumstance shall there be less than eight (8) Officers working the road between the hours of 0330 and 0500.

Power Shift officers will not be used to fill Day Shift hire backs if they have already been forced to hire back to cover the Night Shift between 0300 and 0500 hours, unless that officer has volunteered to do so. In the event of high call volume or other emergency situations requiring additional manpower, the Chief of police, or his designee, will have the discretion to force Power Shift officers to stay past 0330 hours. This will be done in reverse seniority, will be considered a forced hire back, and won't be done for arbitrary or capricious reasons. In the event forced overtime is required it will be assigned in accordance with article 12.12 of the current CBA.

Power Shift assignments (Primary and Alternate) will be picked up annually, by seniority and concurrent with the annual shift assignment period. Officers who select the Power Shift throughout the year unless a Day Shift position becomes available, and they are eligible to be assigned to Day Shift or they are selected for a Specialty Unit. If a Power Shift opening becomes available mid-year, then it will be filled by seniority on the respective night shift in which it becomes available. Shift Trades as set forth in Article 12 of the current CBA can be done between Power Shift and non-Power Shift officers as long as it is done in accordance with the procedures already in place for Shift Trades.

There will always be a minimum of two (2) Early Car Day Shift officers starting at 0500 hours. If there are not two (2) officers starting at 0500 hours, then the proper procedures to fill those vacancies will be followed per the current CBA.

The Chief of police or his designee and three (3) executive board members will meet quarterly for "status reviews" as to the effectiveness and efficiency of the Power Shift. The Union and the Chief agree to make adjustments as needed and as mutually agreed upon by both parties. Such adjustments will be meant to improve the overall efficiency of the Power Shift as it relates to both parties. This does not limit other status review meetings between the Chief's office and PBLC at other times agreed upon by both parties.

If the Power Shift is ever dissolved, then all staffing and shifts will revert back to Articles and Sections already agree upon within this CBA.

SECTION 12.5. SPECIAL DIVISION WORK SCHEDULE

All Special Divisions will have set schedules as follows:

1. Prior to the start of each fiscal year commencing May 1, Detectives assigned to the Detective Bureau will pick from the following shift assignment. Shift assignments, hours of work and days off will be picked according to departmental seniority.

Day Shift

- a. Eight-hour work day Monday – Friday 0800-1600 hours
- b. Ten-hour work day Monday—Thursday 0700-1700 (capped at up to three (3) detectives)
- c. Ten-hour work day Tuesday—Friday 0700—1700

Night Shift

- a. Ten-hour work day Monday – Thursday 1400-0000 hours
- b. Ten-hour work day Tuesday – Friday 1400-0000

On Call

Effective May 1st after ratification, individuals in the detective division will be required to be on-call from time to time. On call shall be limited to Saturdays and Sundays, The Division Commander shall post the open on-call days every four months. The selection of on-call dates shall be by seniority and shall be for a minimum of one (1) weekend per individual. If any on-call dates remain after the selection procedure, they shall be assigned by reverse order of seniority one (1) day at a time. If the staffing of the detective division increases to such an extent that there is no longer a requirement that each individual pick one (1) weekend, the parties shall meet and negotiate an alternative selection process. Employees shall be compensated pursuant to Section 12.10.

*No less than half of the total number of detectives assigned to the night shift will be eligible to work the Monday – Thursday schedule.

2. The Traffic Division will have one shift. The work shift will be Monday through Friday with two time schedules. The first schedule will be 0800 hours to 1600 hours and the second will be 0900 hours to 1700 hrs. The DUI Unit will have two schedules. The first schedule will work Saturday through Wednesday; hours of 2100 to 0500 hours and the second schedule will be from Tuesday through Saturday, hours of 2100 to 0500 hrs.

3. Scheduling for the Community Crimes Division unit shall remain flexible subject to operational need. Scheduling shall not be altered to avoid the payment of overtime.

4. The Neighborhood Policing Unit (NPU) will consist of an eight (8) or a ten (10) hour work schedule, totaling 80 hours in each two week pay period. The schedule will be selected by each Officer prior to the 15th day of each preceding month. The schedule will then be approved by the Unit Commander or his designee.

5. Supervisors and or Officers can adjust their days and or hours of work to accomplish their work goals in these divisions, as long as both the supervisor and officer agree to the hours and day change.

SECTION 12.6. CHANGES IN NORMAL WORKWEEK AND WORKDAY

The shifts, workdays and hours to which employees are assigned shall be stated on the monthly Departmental work schedule. Should it be necessary in the interest of efficient operations to establish schedules departing from the normal workday or workweek, the City will give at least forty-eight (48) hours' notice where practicable of such change to the individuals affected by such change.

SECTION 12.7. OVERTIME PAY

When any police officer is held over more ten (10) or more minutes beyond his regularly scheduled workday or duty shift as a result of events or activities which occur during his shift, he/she shall be paid either by use of compensatory time or overtime pay at a rate of one and one-half (1 1/2) hours for each overtime hour worked. The decision to grant overtime pay or compensatory time will be made by the officer and will be governed by Section 12.7 of this Agreement, except as provided for under Article XIV (Training).

SECTION 12.8. COMPENSATORY TIME

Officers covered by this Agreement may accumulate up to one hundred and twenty (120) hours of Compensatory Time. Upon reaching one hundred and twenty (120) hours of accumulated compensatory time, officers will be paid for all overtime worked and will not have the option of receiving Compensatory time. If after an officer reaches one hundred and twenty (120) hours and uses compensatory time, which drops his bank below the allowed amount of compensatory time he/she may once again accumulate compensatory time up to one hundred and twenty (120) hours. Compensatory time shall be granted at such times and in such blocks as are mutually agreed upon between the Officer and his/her supervisor. Permission to utilize Compensatory Time shall not be denied by the Supervisor if the City is given seventy-two (72) hour notice. Absent

seventy-two (72) hour notice, compensatory time can be denied if hire back is required or unless the Chief of Police and the City have declared an emergency. Only two (2) officers may be off work on compensatory time on the actual day of City recognized holidays. No officer covered by this agreement shall be allowed to utilize more than one hundred and twenty (120) hours of compensatory time within one calendar year. Officers, at their sole discretion, may opt to be paid their hourly rate for each hour of comp time accumulated.

SECTION 12.9. COURT TIME

Employees who would otherwise be off-duty shall be paid at the overtime rate of time and one-half (1 1/2) their regular straight-time hourly rate of pay for all hours worked when appearing in court on behalf of the City in the Capacity of a commissioned officer or when preparing for a court appearance when in the presence of a prosecuting attorney; lunch periods shall not be counted toward hours worked. Employees will be paid overtime rates at a minimum of two (2) hours for all off-duty time spent in a single day or actual time spent, whichever is greater. The night shift and the DUI Unit shall receive a minimum of three (3) hours for all off-duty time spent in a single day or actual time spend, whichever is greater.

SECTION 12.10. REGULAR MONTHLY COURT DATE

The City shall strive to set officer's regular monthly court dates on an officer's work day. In the event that the officer's regular monthly court date is on the officer's day off, the officer shall receive a minimum of three (3) hours overtime pay for time spent in a single day or actual time spent whichever is greater.

SECTION 12.11. CALL-BACK PAY

An employee called back to work for special meetings and or training shall receive a minimum of two (2) hours pay at overtime rates, as provided in Section 12.7, above, unless the time extends to his regular work shift or unless the individual is called back to rectify his own error. The City shall not call back officers for arbitrary or capricious reasons or for purposes of harassment or discrimination.

Officers assigned to the Detective Bureau, Juvenile Bureau, Traffic Accident Investigations, RRT, SIG & NET Units, Waukegan Major Crime Scene Unit and the Lake County Major Crimes Taskforce who are called back to work shall receive a minimum of three (3) hours pay at overtime rates, as provided in Section 12.7.

SECTION 12.12. VOLUNTARY OVERTIME SIGN-UP PROCEDURE

Officers covered by this Agreement who wish to be considered for voluntary overtime may sign a "Voluntary Overtime Sign-Up List." Any officer shall be authorized and allowed to sign up for voluntary overtime, consistent with Appendix B. The Police Department will make a reasonable effort to distribute available overtime as fairly as possible. This does not, however, preclude the Department from not selecting or assigning officers who are non-productive, nor does it preclude the City from respecting the wishes of a vendor which requests for good cause shown that a specific officer not be assigned to their business or event. Officers will be counseled about productivity shortcomings and will be provided an opportunity to make the necessary corrections prior to being denied overtime assignments. Supervisors who assign overtime details shall include the number of supervisors and the number of patrolmen needed for overtime detail. The Chief of Police or his designee will determine the supervisor to patrolmen ratio, based on the needs of the Department. This will not apply to 7G overtime.

SECTION 12.13. REQUIRED OVERTIME

A "Forceback" is a forced/ non-voluntary overtime required by the employer to fill established minimum staffing levels, or when the manpower is needed due to a department-side emergency. Forceback excludes late calls (duties related to a specific job assignment occurring during the Officer's shift) or callbacks related to a specialty unit assignment. In the event a dispute arises over the coding of the overtime, i.e., forceback, late call, or voluntary, the Officer's Union shall decide how the overtime will be coded provided that any change in the coding of the assignment shall not result in backpay to any individual not scheduled to work overtime because of an intervening overtime assignment. The Chief of Police or his designee(s) shall have the right to require overtime work and officers may not refuse overtime assignments. In non-emergency situations, the Chief or his designee as a general rule shall take reasonable steps to obtain volunteers for overtime assignments before assigning required overtime work; though work in progress shall not be interrupted at the City's discretion, and specific officers may be selected for special assignments. If volunteers are not found the City shall assign required overtime consistent with the Hireback and Forced Hireback Procedure set forth in Appendix B.

City required overtime shall take precedence over secondary employment and non-City sponsored events.

SECTION 12.14. PRISONER GUARD DUTY PROTOCOL

Should it become necessary for the department to guard a prisoner, at any location away from the police department, and for any length of time that extends into the next shift, the following protocol will be used:

1. Any Officer working his/her regularly scheduled assignment may be used.
2. The department is prohibited from using a regularly scheduled patrolman should the use of such patrolman cause the shift to fall below minimum staffing requirements, as stated in Article 12 of the CBA.
3. If the department cannot staff the detail with an Officer working his regular schedule, the department must create an overtime detail.
4. When assigning the overtime detail, the assigning supervisor will post the assignment details via the VCS notification system.
5. The detail will be filled using the Waukegan Police Department General Order PERS.07 "Overtime Assignments" *except that the patrolmen will be given priority to fill the detail.*
6. If a patrolman has not been assigned to the detail six (6) hours prior to the detail start time, the department will open the detail and assign the detail, first come first serve, from a pool consisting of all Sworn Waukegan Police Officers.
7. After every attempt to staff the detail with a voluntary Officer has been exhausted, the assigned supervisor will staff the detail using the procedure in section 12.13.

SECTION 12.15. FATIGUE MANAGEMENT

Effective May 1, 2010, officers may work a total of 24 hours per week in secondary employment.

The combination of duty hours worked, secondary employment hours worked, and off-duty hire back hours worked within a twenty-four (24) period shall not exceed eighteen (18) hours if the officer is scheduled to work within the department the next day.

Officers are not authorized to work patrol division double shifts, when they are scheduled to work the next day in any capacity within the police department.

All officers are limited to six hours of patrol division hire back under the following circumstances:

1. The officer is scheduled to work in any division in the police department the day following a Patrol Division hire back.

2. The officer worked a full 12-hour Patrol Division shift immediately before the patrol division hire back.
3. The officer worked a full shift in another division within the police department immediately prior to the Patrol Division hire back.

Officers are authorized to work a full twelve (12) hours Patrol Division hire back if they are scheduled to be off duty immediately after the hire back occurs (Holiday, vacation, personal day, comp time) and if their total number of continuous hours worked do not exceed the eighteen (18) hour threshold.

Exceptions as follows:

1. If a Commander of Police, Deputy Chief of Police, or the Chief of Police deems a special circumstance due to operational needs an officer may be allowed to work in excess of eighteen (18) hours in a twenty-four (24) hour period.
2. Officers may be required to work in excess of eighteen (18) hours in a twenty-four (24) hour period if the Chief of Police or his designee deems a law enforcement emergency exists or for a special event.

Any officer working fourteen (14) to sixteen (16) consecutive hours shall be given the ability to take an extra hour fatigue break when the officer deems it necessary, and his supervisor authorizes the break. This break is to manage fatigue and shall not be denied for arbitrary or capricious reasons.

PBLC officers scheduled to work mandatory overtime resulting in a shift of sixteen (16) or more hours shall be permitted one (1) hour of fatigue management time, to be used at the officer's discretion, at any time during the shift with the approval from a shift commander, provided the request will not be denied for arbitrary or capricious reasons.

The City shall furnish and maintain a sleep center, a breakroom, and a lounge area to accommodate the long hours frequently required by forced overtime.

Both the City and the WPBLC, Unit #42 agree that this section is necessary due to the implementation of a 12-hour work schedule for the Patrol Division and the potential for officer fatigue as it relates to the schedule.

SECTION 12.16. KELLY TIME

A. KELLY TIME

Union members assigned to the patrol division, working 12-hour shifts shall receive (9) nine work reduction days (hereinafter "Kelly Days") totaling 108 hours.

The patrol division 12-hour schedule requires annual hours of 2,184. In order to offset the annual total hours to FLSA standard 2,080 hours, Kelly Days are utilized. The (9) nine Kelly Days will be available to utilize by the Union members assigned to the patrol division's 12-hour shifts on May 1st of each calendar year.

B. SCHEDULING OF KELLY TIME

During annual vacation picks, officers assigned to the 12-hour patrol shifts will be given a list of Kelly Days for the upcoming fiscal year. Availability of Kelly Days shall consist of no less than one day for each day of the calendar year for officers assigned to a "Day Shift" and two days for each day of the calendar year for officers assigned to a "Night Shift".

Officers shall pick their Kelly Days, by seniority, in three rounds. The first round of Kelly Day picks shall begin with the most senior officer assigned to each shift picking (3) three Kelly Days from the list of available days. The list of available days will then be provided to the next most senior officer who will also pick (3) three Kelly Days from the remaining available days. Selection will continue in seniority order until each officer has had the opportunity to pick (3) three Kelly Days. The second round will also consist of each officer picking (3) three Kelly Days in seniority order as described in round one above. The third round will consist of officers picking their final (3) three Kelly Days in seniority order as in rounds one and two, until each officer has picked all (9) nine Kelly Days.

Kelly Days must be taken in full 12-hour shifts increments unless an officer has received a prorated number of hours as described below. Unused Kelly Days have no cash value and may not be carried over to the following fiscal year. In the event an officer elects to reschedule a previously selected Kelly Day, his/her request cannot be scheduled in a manner that would cause a hire back, due to any conflict with other officers on the same shift who have prescheduled vacation, holiday, compensatory time, and/or Kelly Day(s).

Should an officer be reassigned or otherwise removed from the patrol division 12-hour schedule, the affected officer shall reimburse the City for any Kelly Days taken but not earned. Reimbursement may be in the form of an equal amount of other paid time off. Officers who have no remaining paid time off or who separate employment will be required to have their next or final payroll check reduced by an amount equal to the Kelly time owed to the City. Any officer entering the patrol division after May 1st of the fiscal year will receive a prorated number of Kelly Days hours to be scheduled upon assignment to the patrol division.

ARTICLE XIII

EMPLOYEE DISCIPLINE

SECTION 13.1. CITY'S RIGHT TO DISCIPLINE

Both parties recognize that the City has the right to conduct reasonable investigations where questions are raised concerning the conduct of an officer of the Police Department. Nothing in this Article shall be construed to limit management's rights properly to conduct such investigations.

SECTION 13.2. CONDUCT OF DISCIPLINARY INVESTIGATIONS

Whenever a law enforcement officer, including a probationary officer, is under investigation for conduct which the City reasonably believes may lead to discipline, the City agrees it will not engage in investigative conduct which, under all of the circumstances then known to the City, would be deemed to be arbitrary, capricious, illegal or unreasonable. The City shall conclude said investigation within a reasonable amount of time for the facts known to the City. The officer under investigation shall be given notice of the results of said investigation within five (5) days after conclusion of the investigation by the Chief of Police. He shall be informed, in writing, if he was cleared of any wrongdoing or what discipline shall be given.

SECTION 13.3. DEFINITIONS

For the purposes of this Article, the terms defined in this Section shall have the meaning ascribed herein:

1. **"Informal inquiry"** means a meeting by supervisors or command personnel with an officer upon whom an allegation of misconduct has come to the attention of such supervisory or command personnel, the purpose of which meeting is to mediate a citizen complaint or discuss the facts to determine whether a formal investigation should be commenced.
2. **"Formal investigation"** means the process of investigation ordered by a commanding officer during which the questioning of an officer is intended to gather evidence of misconduct which may be the basis for filing charges seeking his or her removal, discharge, or suspension in excess of three (3) days.

3. **“Interrogation”** means the questioning of an officer pursuant to the formal investigation procedures of the City in connection with an alleged violation of the City’s rules which may be the basis for the filing of charges seeking the officer’s suspension, removal or discharge. The term does not include questioning as part of an informal inquiry or relating to minor infractions of agency rules which may be noted on the officer’s record but which may not result in removal, discharge or suspension in excess of three (3) days.
4. **“Administrative proceeding”** means any non-judicial hearing which is authorized to recommend, approve or order the suspension, removal, or discharge of an officer.

SECTION 13.4. PLACE OF INTERROGATION

The interrogation shall take place at the Waukegan Police Department unless extraordinary circumstances warrant otherwise.

SECTION 13.5. DISCLOSURE OF INFORMATION TO SUBJECT OF INTERROGATION REGARDING NATURE OF INVESTIGATION AND COMPLAINANTS

No officer shall be subjected to interrogation without first being informed in writing of the nature of the investigation.

If an administrative proceeding is instituted, the officer shall be informed beforehand of the names of all complainants. The information shall be sufficient as to reasonably apprise the officer of the nature of the investigation.

SECTION 13.6. TIME OF INTERROGATION

All interrogations shall be conducted at a reasonable time of day. Whenever the nature of the alleged incident and operational requirements permit, interrogations shall be conducted during the time when the officer is on duty.

SECTION 13.7. DISCLOSURE TO SUBJECT OF INTERROGATION OF OFFICER IN CHARGE, INTERROGATORS AND OTHERS PRESENT

The officer under investigation shall be informed of the name, rank and unit or command of the officer in charge of the investigation, the interrogators, and all persons present during any interrogation except at a public administrative proceeding.

SECTION 13.8. DURATION OF INTERROGATION SESSIONS

Interrogation sessions shall be of reasonable duration and shall permit the officer interrogated reasonable periods for rest and personal necessities.

SECTION 13.9. ABUSIVE AND OFFENSIVE LANGUAGE PROHIBITED AT INTERROGATION

Neither the officer being interrogated nor any other person(s) present at the interrogation shall be subjected to professional or personal abuse, including offensive language greater than applicable law allows during interrogation of members of the general citizens by officers in the conduct of an investigation.

SECTION 13.10. RECORD OF INTERROGATION--TRANSCRIPT

If specifically requested by the person(s) being interrogated prior to the beginning of the interrogation there shall be made a complete record of the interrogation, and a complete transcript or copy shall be made available to the officer under investigation without charge and without undue delay. Such record may be electronically recorded.

SECTION 13.11. ADVICE OF RIGHTS

No officer shall be interrogated without first being advised in writing that admissions made in the course of the interrogation may be used as evidence of misconduct or as the basis for charges seeking suspension, removal, or discharge; and without first being advised in writing that he or she has the right to counsel of his or her choosing who may be present to advise him or her at any stage of any interrogation.

SECTION 13.12. PRESENCE OF COUNSEL OR REPRESENTATIVE OF COLLECTIVE BARGAINING UNIT

The officer under investigation shall have the right to be represented by counsel (attorney and/or Labor Committee representative) of his or her choosing and may request counsel at any time before or during interrogation, unless this requirement is waived by the officer being interrogated. When such request for counsel is made, no interrogation shall proceed until reasonable time and opportunity are provided the officer to obtain counsel. A representative of the Labor Committee may be present during the interrogation of an officer, unless this requirement is waived by the officer being investigated.

SECTION 13.13. ADMISSIONS OR CONFESSIONS OBTAINED IN VIOLATION OF THIS ARTICLE

Admissions or confessions obtained during the course of any interrogation not conducted in accordance with this Article may not be utilized in any subsequent disciplinary proceeding against the officer.

SECTION 13.14. POLYGRAPH OR CHEMICAL TESTS

In the course of any interrogation no officer shall be required to submit to a polygraph test, or any other test questioning by means of any chemical substance, except with the officer's express written consent. Refusal to submit to such tests shall not result in any disciplinary action nor shall such refusal be made part of his or her record.

SECTION 13.15. CONSTITUTIONAL AND LEGAL RIGHTS

The rights of officers in disciplinary procedures set forth under this Article shall not diminish the rights and privileges of officers that are guaranteed to all citizens by the Constitution and laws of the United States and the State of Illinois.

SECTION 13.16. APPLICATION OF ARTICLE

This Article does not apply to any officer charged with violating any provisions of the Criminal Code of 1961, or any other federal, State, or local criminal law.

SECTION 13.17. RETALIATORY ACTIONS PROHIBITED

No officer shall be discharged, disciplined, demoted, denied promotion or seniority, transferred, reassigned or otherwise discriminated against in regard to his or her employment, or be

threatened with any such treatment as retaliation for or by reason of his or her exercise of the rights granted by this Article.

SECTION 13.18. CORRECTIVE DISCIPLINE

The City agrees with the basic tenets of progressive and corrective discipline, where appropriate. Once the measure of discipline is determined and imposed, the City shall not increase it for the particular act of misconduct unless new facts or circumstances become known.

SECTION 13.19. PRESENCE OF LABOR COMMITTEE REPRESENTATIVE AT OTHER TIMES

At any meeting, pertaining to the job performance or conduct of an officer relating to his employment which the officer reasonably believes may result in discipline, suspension, or discharge at which one or more supervisors or command officers are present, the officer shall be entitled to the presence of a Labor Committee representative if he so requests. No such meeting shall proceed until reasonable time and opportunity are provided for a representative to be present, unless this requirement is waived by the officer.

SECTION 13.20. EMPLOYEE PHOTOS

No photo of an officer taken in connection with the officer's employment shall be made available to the media unless authorized by the officer.

SECTION 13.21. USE OF MOBILE AUDIO-VISUAL SYSTEMS

The Waukegan Police Benevolent Labor Committee, unit #42 agrees to allow the City to implement CALEA Policies and Procedures and to discuss (negotiate if needed) policies that affect working conditions. The Labor Committee also agrees to allow the City to implement Automated Vehicle Locators and Mobile Audio-Visual Systems in the City's fleet of vehicles to regulate safe use of City vehicles. Anything the City views on the Mobile Audio-Visual System will not be used for administrative discipline unless a complaint has been filed prior to review of the tape. The City may use what it finds if **ALERTED** by the MAV of possible unsafe use of City equipment. Automated Vehicle Locators will be used for safety purposes and will not be used for discipline in an arbitrary or capricious manner. The City agrees to meet on a regular basis with the Labor Committee of the Union in regards to all three of the above mentioned items and to adjust policies, procedures and practices when it is in the best interest of its' Officers, the Department and the City.

SECTION 13.22. BODY WORN CAMERA

The City, its Police Department, and the Union are committed to protecting the safety and welfare of the citizens of Waukegan and its police officers. The parties agree that recordings from body worn cameras, defined as, *an electronic camera system for creating, generating, sending, receiving, storing, displaying, and processing audiovisual recordings that may be worn about the person of a law enforcement officer*, (hereinafter "BWC"s) can provide officers with an invaluable instrument to aid in criminal prosecution. It is mutually understood that BWCs can protect officers and citizens from false accusations through the objective documentation of interactions between officers of the Department and the public. Officers issued a BWC will use it pursuant to this agreement and in accordance with the Illinois state law specifically, 50 ILCS 706/10 *et seq.* (Public Act 099-0352). Prior to requiring their use, the City shall be responsible for providing officers participating in the program with BWC equipment that is operating correctly.

BWCs shall be capable of recording a period of 10 hours or more and shall record video only while in buffering mode. Recordings made on a BWC will be retained on a recording medium for a period of 90 days. Under no circumstances shall any recording made with a BWC be altered, erased, or destroyed prior to the expiration of the 90-day storage period. Following the 90-day storage period, any and all recordings made with an officer-worn body camera must be destroyed, unless any encounter captured on the recording has been flagged. An encounter is deemed to be flagged when:

1. A formal or informal complaint has been filed;
2. The officer discharged his or her firearm or used force during the encounter;
3. Death or great bodily harm occurred to any person in the recording;
4. The encounter resulted in a detention or an arrest, excluding traffic stops which resulted in only a minor traffic offense or business offense;
5. The officer is the subject of an internal investigation or otherwise being investigated for possible misconduct;
6. The supervisor of the officer, prosecutor, defendant, or court determines that the encounter has evidentiary value in a criminal prosecution; or
7. The recording officer requests that the video be flagged for official purposes related to his or her official duties.

Under no circumstances shall any recording made with a BWC relating to a flagged encounter be altered or destroyed prior to 2 years after the recording was flagged. If the flagged

recording was used in a criminal, civil, or administrative proceeding, the recording shall not be destroyed except upon a final disposition and order from the court.

Following the 90-day storage period, recordings may be retained if the chief of police or his designee at the law enforcement agency designates the recording for training purposes. If the recording is designated for training purposes, and the officer(s) recorded on the video have been notified and have no reasonable objections, the recordings may be viewed by other officers of the Waukegan Police Department only, in the presence of a training instructor, for the purposes of instruction, training, or ensuring compliance with agency policies.

Cameras shall be turned on at all times when the officer is in uniform, for purposes of this agreement the definition of uniform will be such as outlined in 50 ILCS 706/10 *et seq.* (Public Act 099-0352) and is responding to service or engaged in any law enforcement-related encounter or activity, that occurs while the officer is on-duty. If exigent circumstances exist which prevent the camera from being turned on, the camera must be turned on as soon as practicable. The BWC shall only be activated by the officer wearing the equipment. Any remote activation of the BWC shall be deemed an intrusion to the officer's expectation of privacy and shall be cause to discontinue the BWC program. If due to equipment, or cloud storage malfunctions, officers are unable to access video on demand, they shall not be required to use a BWC until problems are resolved and the video created is accurate and immediately available to review. Additionally, officers shall not be required to utilize a BWC when responding to calls while driving a vehicle with a MAV unit and the MAV unit is activated. If responding to a call without the use of a MAV unit the BWC must be activated.

BWC's may be turned off when the officer is inside of a patrol car which is equipped with a functioning in-car camera; however, the officer must turn on the camera upon exiting the patrol vehicle for law enforcement-related encounters. Cameras shall be turned off when:

1. The victim of a crime requests that the camera be turned off, and unless impractical or impossible, that request is made on the recording;
2. A witness of a crime or a community member who wishes to report a crime requests that the camera be turned off, and unless impractical or impossible that request is made on the recording; or
3. The officer is interacting with a confidential informant used by the law enforcement agency.

However, an officer may continue to record or resume recording a victim or a witness, if exigent circumstances exist, or if the officer has reasonable articulable suspicion that a victim or

witness, or confidential informant has committed or is in the process of committing a crime. Under these circumstances, and unless impractical or impossible, the officer must indicate on the recording the reason for continuing to record despite the request of the victim or witness.

Cameras may be turned off when the officer is engaged in community caretaking functions. However, the camera must be turned on when the officer has reason to believe that the person on whose behalf the officer is performing a community caretaking function has committed or is in the process of committing a crime. If exigent circumstances exist which prevent the camera from being turned on, the camera must be turned on as soon as practicable.

The officer must provide notice of recording to any person if the person has a reasonable expectation of privacy and proof of notice must be evident in the recording. If exigent circumstances exist which prevent the officer from providing notice, notice must be provided as soon as practicable.

Officers who may have inadvertently activated their BWC during a non-law enforcement related event can tag the video "accidental". The BWC administrator will review the video and verify the video is non-law enforcement related and then delete the video if it is in fact a non-law enforcement video. The contents of any such recording shall not be used in any manner in any adverse employment action against an officer.

Officers assigned a BWC are hereby authorized to view their own recordings and to an incident using their unique user access credentials. Officers (including Detectives) are authorized to view recordings pertaining to criminal investigations to which they are assigned. Officers shall not share their unique access credentials with other users.

Supervisors and any BWC administrator are authorized to view all recordings using their unique user access credentials from a Department computer at a Department facility. Provided that Supervisors and or any BWC administrators shall not troll through BWC footage in an attempt to discipline officers for policy violations or for the purpose of evaluating officer productivity. Supervisors shall not share their unique access credentials with other users. Officers that need to access a recording that is not their own will request to do so through their immediate supervisor. The supervisor will evaluate the request and allow the officer to view the recording if appropriate. All videos relevant to a specific incident shall be made available for viewing to all officers involved in that incident, for a reasonable time, prior to giving a statement or preparing a report in reference to the incident, unless prohibited by law. All videos relevant to an officer involved shooting, use of deadly force, use of force resulting in great bodily harm, or

other situations where state law prohibits reviewing video prior to preparing the initial statement or initial report shall be made available for reviewing to all officers involved in that incident for a reasonable time prior to giving a supplementary statement or preparing a supplementary report in reference to the incident. Nothing in this paragraph shall prohibit the review and use of BWC data by the department where a formal or informal complaint has been executed alleging misconduct by an officer involving a specific incident.

“Trolling” as it relates to Section 13.22, shall mean any review, to include random selection of BWC video without a formal or informal complaint or internal or external investigation. Complaints and investigation must be consistent with department policy and the CBA. Under no circumstances shall trolling BWC video result in discipline for policy violations or lack of productivity.

The parties agree that trolling of the BWC video will take place only when adhering to the following protocol:

1. The Chief of police or his designee may review two (2) BWC videos per month, for each sworn employee subject to the police department’s body worn camera policy.
2. Once the Chief of police, or his designee, initiate the random sampling of videos, all sworn personnel, including supervisors, must have two (2) videos randomly reviewed by the Officer’s immediate supervisor, utilizing the same process described herein.
3. The videos to be reviewed will be selected each month by a random number generator, mutually agreed upon by the Chief of Police and the Union President.
4. The reviewing supervisor will record the process of obtaining each random number, with the use of his or her BWC.
5. The Chief or his designee will keep a log to document this review process.
6. The log will only contain the following information and will be stored and maintained on the “J” drive as “read only” filed, viewable b all sworn personnel.
 - a. The name and badge number of the reviewing personnel.
 - b. The name and badge number of the officer whose video was reviewed.
 - c. The date the video was created and the report number of the video.
 - d. The day, time, and computer number the review was completed on.
7. Monthly review must be completed within 30 days following the last day of the month

being reviewed.

8. If a policy violation or lack of productivity is observed, the Chief of police or his designee may, at the Chief's discretion, address the policy violation in the spirit of coaching and training with the employee. Under no circumstances will the previously noted training or coaching be documented; nor will it be used for any future discipline or administrative proceedings.

If the above protocol is not followed, all BWC trolling shall cease until a new protocol can be negotiated.

Nothing within this section shall be construed to limit the ability of the Training Officer to review probationary employees' BWC video for the limited purpose of training or retraining probationary employees.

For the purpose of redaction, labeling, or duplicating recordings, access to camera recordings shall be restricted to only those personnel responsible for those purposes. Only current sworn law enforcement personnel or civilian employees, who were previously state certified as law enforcement officers, shall be allowed or given access to BWC video/audio for purposes of redacting, labeling, and duplicating.

The release of video recordings to any non-law enforcement party requested through a (FOIA) request will be handled in accordance with 50 ILCS 706/10 et seq. (Public Act 099-0352) and the Illinois Freedom of Information Act, 5 ILCS 140. Prior to the release of any BWC recording to the public, or any party, the city FOIA attorney will ensure that proper redactions have been made in accordance with state law. The City of Waukegan FOIA attorney will then make notification, via email, to each Waukegan police officer involved with said BWC recording. The notification shall include the scope of the FOIA request as well as the BWC footage released. Civilians shall not be permitted to view any data recorded by a BWC, unless the video is being shown to the civilian for purposes of mitigating a complaint.

In the event complaints of misconduct or policy violations are made against a PBL 42 member police officer and should BWC footage contain evidence of a false representation of the facts, the Chief of police, or his designee, will make every reasonable effort to thoroughly investigate and pursue criminal charges against the person or persons making such false complaints.

Any amendment to 50 ILCS 706/Article 10 et seq. (Public Act 099-0352) effective after the date of this agreement shall be cause for reopening this agreement for further negotiation

relevant to such amendment. The parties shall meet, at least quarterly, to conduct reviews of the BWC program with emphasis on the functionality of the equipment and the storage platform.

Nothing herein shall constitute a waiver of the provisions included in Section 13.20 or Section 13.21 of the current collective bargaining agreement between the parties or any individual officer's right to, or expectation of privacy, in their personal non-law enforcement interactions and activities which occur during hours of work.

ARTICLE XIV

TRAINING

SECTION 14.1. GENERAL POLICY

The City is committed to the principle of training for all employees. Training shall be provided insofar as it is economical to do so and insofar as such training does not adversely affect and interfere with the orderly performance and continuity of municipal services within the Police Department. Training shall be scheduled by the Chief of Police or his designee. Employees will attend training sessions as assigned by the City. Officers assigned to patrol who are assigned to attend required training resulting in a work day/travel time of less than their assigned work shift will be required to return to the City, report to the Shift Commander in order to finish the remainder of a work shift contiguous to their training day. Officers assigned to attend required training sessions which result in a workday longer than their assigned work shift shall receive one and one-half (1 ½) hours compensatory time off or overtime pay at time and one half for every ten minutes over their assigned work shift because of such required training and related travel time.

SECTION 14.2. ACCESS

The Chief of Police shall generally encourage equal access to training opportunities to the extent that operational requirements of the Department permit. The Labor Committee shall be given an opportunity, upon request, to offer suggestions to the Chief on ways to improve access to training opportunities.

SECTION 14.3. POSTING

Upon receipt of a notice of an acceptable school training program, it will be posted in the Police Department, giving the officers an opportunity to volunteer. Selection will be made taking into consideration such factors as skill, ability, need and seniority, as deemed appropriate by the

Chief, acting in the best interests of the Department but such selections will be made on a non-arbitrary, non-discriminatory basis.

SECTION 14.4. CONFERENCE AND TRAVEL

Authorized local and non-local travel for purposes of attending training and approved professional meetings and conferences must adhere to the requirements of the city's accountable reimbursement plan. Prevailing city policy shall govern the reimbursement and/or payment of expenses related to travel for purposes of duty related training and related law enforcement activities, as approved in advance by the Chief of Police or his designee.

SECTION 14.5. TUITION REIMBURSEMENT

The City acknowledges and is committed to the continuing training, professional growth, and improvement of employees. To assist employees in such training, the City shall partially reimburse employees for tuition and required text expense, provided the employee first receives the expressed written approval of the Chief of Police and the Mayor, or his designee.

To further qualify for such reimbursement the course must be administered by an accredited school of continuing education, must be specifically job related: criminal justice, public administration, political science, or business administration, and part of an undergraduate program approved in advance by the City.

- The amount of reimbursement shall be 50% of all textbooks, lab fees and tuition for all grades of "C" or above.
- The maximum reimbursement shall be \$3,600 per contract year.
- Pass or Fail Courses
 - Passing Grade – 50% Reimbursement
- The City shall pay 100% of all required seminars or individual job-related training courses, providing prior approval is granted by the Chief of Police or his designee.

Furthermore, if the employee leaves the City's employ before completing thirty-six (36) months of continuous service with the City beyond completion of the course, any monies reimbursed the employee shall be refunded to the City. The City may deduct from the employee's final pay check any monies not properly reimbursed as provided in this section of the Agreement.

SECTION 14.6 FIELD TRAINING OFFICER PAY

Bargaining unit members designated by the Chief of Police to perform the duties of Field Training Officer (FTO) shall receive compensation in addition to their regular rate of pay during the duration in which FTO duties are actually being performed. Officers shall receive two hours at one and one-half times their regular hour's salary for each day in which the Officer performs the duties of Field Training Officer.

If an Officer who is not an FTO provides a ride-along to a police department Trainee, the Officer shall receive one (1) hour of pay if the ride-along is at least one (1) and not more than eight (8) hours. The Officer shall receive two (2) hours of pay if the ride-along is more than eight (8) hours. This ride-along pay shall be retroactive to May 1, 2022.

SECTION 14.7 INTERN SCHEDULED AND ELIGIBILITY

1. The shift CO will create an intern eligibility list which shall consist of all regular duty Patrolman assigned to each shift the intern has been scheduled to work.
2. The shift CO, working the day the intern is scheduled, will be responsible for assigning the intern to a Patrolman.
3. The intern will be assigned in seniority order.
4. Each time a Patrolman is assigned an intern, said Patrolman's name will be stricken from the intern eligibility list.
5. Each day an intern needs to be assigned to a Patrolman, the most senior patrolman remaining on the intern eligibility list shall be given the opportunity to take the intern.
6. If an eligible senior Patrolman chooses to forgo the responsibility of the intern, the next senior Patrolman will be given the opportunity.
7. If every Patrolman on any given shift should refuse to take the intern, the intern will be mandatorily assigned to the least senior patrolman working on said shift.
8. Once a Patrolman is forced to take the intern, his name will be stricken from the intern eligibility list and he will not be forced again until every patrolman on the shift has been forced to take an intern.
9. Compensation for the intern assignment shall be one (1) hour of comp time or overtime paid at time and one half of the Patrolman's hourly pay.

ARTICLE XV

SENIORITY, LAYOFF AND RECALL

SECTION 15.1. SENIORITY DEFINED

Effective May 1, 2022, seniority for wages and benefits is defined as an officer's length of continuous service within the Department from the employee's last date of hire, less any adjustments due to layoff, approved leaves of absence without pay, or other breaks in service. Seniority for any other purpose in this Agreement is defined as an officer's length of continuous service within the bargaining unit from the employee's last date of hire, less any adjustments due to layoff, approved leaves of absence without pay, or other breaks in service, unless otherwise indicated.

SECTION 15.2. APPLICABILITY OF SENIORITY

Bargaining unit seniority shall be used to determine the relative rights of employees within the bargaining unit as expressly set forth in this Agreement.

SECTION 15.3. SENIORITY LIST

The City shall prepare a list setting forth the present seniority dates for all post-probationary officers covered by this Agreement within thirty (30) days of the signing of this Agreement. Such list shall finally resolve all questions of seniority affecting officers covered by this Agreement. Any disputes as to seniority listing shall be presented to the City, and if the City's position is reasonable, it shall prevail. With the exception of changes in the seniority list for new hires, terminations, suspensions and leaves of absence, the seniority list and the seniority dates contained therein shall be considered final ten (10) days after posting. The seniority list shall be revised by the City and reposted every six (6) months. Any subsequent errors in any posted seniority list must be brought to the attention of the City in writing within ten (10) calendar days of the posting of the list, otherwise, the list shall be deemed to be correct and shall not thereafter be subject to modification and any action based on the seniority list shall not be subject to a later grievance.

SECTION 15.4. TERMINATION OF SENIORITY

The employment relationship and seniority shall be terminated for all purposes when an officer:

- a. quits or retires;
- b. is discharged for cause (except a probationary officer need not be discharged for cause);
- c. is absent exceeding the period for which a leave of absence has been granted or extended in writing, or obtains a leave of absence under false pretenses;
- d. does not perform work for the City (except for military service) for a period in excess of twelve (12) months, or the length of the employee's service when the absence began, whichever is shorter;
- e. is absent for two (2) consecutive working days without notifying the City or, after layoff, fails to notify the City within three (3) working days of an intention to return to work (within the next seven (7) calendar days) following telephone notification or the mailing of a certified letter of recall from layoff (mailed to the employee's last address as shown on the City's records);
- f. Accepts other employment during a leave of absence unless agreed to in writing by the City;
- g. fails to report for work, after being off due to a compensable injury or accident, within three (3) working days after release by a doctor.

SECTION 15.5. PROMOTION

Promotions shall be governed by applicable Civil Service Regulations to the extent such regulations continue to apply to the Department.

If the Illinois Public Labor Relations Act is amended to make promotions a mandatory subject of bargaining in police departments, the weights assigned to and the components of the promotional process shall be as follows:

- 10%- Seniority
- 15%- Police Chief Points
- 5%- Civil Service Commission interview
- 70%-Written

The components for scoring shall be administered in order as listed above. The score for each component shall be posted prior to the next component.

For calculating purposes, the end date shall be the date of the written examination. Calculating seniority points for candidates testing for the rank of Sergeant: for every consecutive month of seniority after seven (7) years with the Waukegan Police Department .0962 points shall be

awarded, with a maximum of ten (10) points. Seniority points for all candidates shall be posted thirty (30) days prior to the written exam.

The Written Exam shall be scored on a scale of 100 points. The component scores shall then be reduced by the weighting factor assigned to the component on the test and the scores of all components shall be added to produce a total score based on a scale of 100 points. Candidates shall be ranked on the preliminary promotional list in rank order based on the highest to the lowest points scored on all of the documents of the test.

Preference points (as provided for in the CSC Rules), if any, shall be applied at the request of the applicant after the posting of the preliminary list. Once all applicants have been given an opportunity to utilize any preference points, a final promotional list shall be posted.

SECTION 15.6. SHIFT ASSIGNMENTS

Shift assignments will be chosen by officers in seniority order, once each year, in the month of April for one full year period (May through April). Such assignments will be allowed to the extent that departmental operations will not be adversely affected. This provision does not apply to probationary officers.

SECTION 15.7. LAYOFF AND RECALL

The City, in its discretion, shall determine whether layoffs are necessary and such decision shall not be reversed unless it is clearly established that such a determination is arbitrary and capricious. Although not limited to the following, layoffs, shall ordinarily be for lack of work and/or lack of funds. If it is determined that layoffs are necessary, employees covered by this Agreement will be laid off in accordance with their seniority order as provided in Illinois Statute, 65 ILCS 5/10-2 1/18.

Except in an emergency, no layoff will occur without reasonable notification to the Labor Committee (not to be less than five (5) calendar days prior to any layoff) and consultation with the Labor Committee in good faith, affording the Labor Committee opportunities to propose alternatives to layoff.

Employees who are laid off shall be placed on a recall list for a period of two (2) years. If there is a recall, employees who are still on the recall list shall be recalled, in the inverse order of their layoff, provided they are presently qualified to perform the work to which they are recalled. The City shall not hire new employees in bargaining unit positions as long as there are still employees on the recall list who are presently qualified to perform the work.

Employees who are eligible for recall shall be given fourteen (14) calendar days' notice of recall and notice of recall shall be sent to the employee by certified or registered mail with a copy to the Labor Committee, provided that the employee must notify the Police Chief or his designee of his intention to return within three (3) calendar days after receiving notice of recall. The City shall be deemed to have fulfilled its obligations by mailing the recall notice by registered mail, return receipt requested, to the mailing address provided by the employee, it being the obligation and responsibility of the employee to provide the Police Chief or his designee with his latest mailing address.

ARTICLE XVI

LABOR COMMITTEE BULLETIN BOARD

The City will make available appropriate space or spaces and the Labor Committee will provide a suitable bulletin board or boards for the posting of official Labor Committee notices. Copies of material to be posted will be provided to the Chief's office prior to posting on the bulletin board. The Chief will be provided the key to any bulletin board which is to be locked, but nothing shall be posted or removed by the Chief or his designee without prior notice to and consent of the Labor Committee.

ARTICLE XVII

PERSONNEL FILES

SECTION 17.1. INSPECTION

Upon appropriate request, an officer may inspect his personnel file during **working hours** at a time and in a manner mutually acceptable to the officer and the City, where it will not adversely affect the officer's performance of his duties, subject to the following:

1. Upon request, an officer who has a written grievance on file who is inspecting his personnel file with respect to said grievance may have a Labor Committee official present during such inspection so long as the Labor Committee official, if an employee, is on non-paid status during the inspection.
2. Copies of materials in an officer's personnel file shall be provided the officer, upon request, if such materials are to be used in the processing of a grievance at the second step or beyond. The officer shall bear the cost of duplication.

3. An officer shall be provided a copy of each completed evaluation form prepared subsequent to the effective date of this Agreement where such form will play a role in the officer's evaluation of performance.
4. Pre-employment information, such as reference checks and responses, or any information at any time received by the City with the specific request that it remain confidential, shall not be subject to inspection or copying.

SECTION 17.2. COMPLIMENTARY OR DEROGATORY

Complimentary or derogatory comments received by the City concerning an officer's performance of duties will be placed in the officer's personnel file.

SECTION 17.3. DESTRUCTION OF FILES

Disciplinary Investigation Files will not be admissible or considered before any tribunal (including arbitration) four (4) years after the date of the incident or the date upon which the violation is discovered, whichever is longer, unless the investigation relates to a matter which has been subject to either civil or criminal court litigation prior to the expiration of the four (4) year period. In such instances, the Complaint case files normally will be deemed inadmissible three (3) years after the date of the final court adjudication, unless a violation is found or a pattern of alleged infractions exists. After the applicable timelines, such records shall not be utilized for any employment purpose including discipline, performance evaluations and/or promotions.

ARTICLE XVIII

LEAVES

SECTION 18.1. DEATH IN FAMILY

The City agrees to provide to officers three (3) days off within a reasonable time, without loss of pay or seniority, following the date of death of one of the following members of the officer's family: mother, father, wife, husband, daughter or son (including step or adopted), sister or brother (including half or step), father-in-law, mother-in-law, daughter-in-law, son-in-law, stepmother and stepfather for the purpose of attending the funeral and attending to the affairs of the deceased. The City agrees to provide officers one (1) day off within five (5) days after the date of death without loss of pay or seniority as a result of a death to the officer's grandparent or grandchild. If

an officer has reasonable cause he shall be allowed to use available vacation and personal time upon approval of the Chief, which approval shall not be unreasonably denied.

Upon request and proper notification, officers shall be provided up to three (3) days leave to attend the funeral of a brother-in-law and/or sister-in-law. Officers shall also be provided up to one (1) day leave to attend the funeral of a niece or nephew, with leave so provided charged against the officer's available compensatory or vacation time.

SECTION 18.2. LEAVE OF ABSENCE

Employees covered by the terms of this Agreement may, at the City's discretion, be granted a Leave of Absence without pay not to exceed a period of one (1) year, after authorization from the Chief of Police and approval of the Civil Service Commission upon written request.

SECTION 18.3. LEAVE FOR ILLNESS, INJURY OR PREGNANCY

In the event an employee is unable to work by reason of illness or non-job related injury or pregnancy, the City may grant a leave of absence without pay during which time seniority shall not accrue for so long as the employee is unable to work.

A leave of absence for illness, non-job related injury, or pregnancy will under no circumstances be granted until an employee's entire accrued sick leave is exhausted. To qualify for such leave, the employee must report the illness, injury or inability to work because of pregnancy as soon as the illness, injury or pregnancy is known, and thereafter furnish to the City a physician's written statement showing the nature of the illness, injury or state of pregnancy and the estimated length of time that the employee will be unable to report for work, together with a written application for such leave. Thereafter, during such leave, the employee may be required to furnish a current report from the attending doctor at the end of every forty-five (45) day interval.

Before returning from a leave of absence for injury, illness or pregnancy, or during such leave, the employee, at the discretion of the City, may be required to have a physical examination by a doctor designated by the City to determine the employee's capacity to perform assigned work.

SECTION 18.4. INJURY ON THE JOB ("IOD") OR OCCUPATIONAL DISEASES LEAVE

In the event an officer is injured in the performance of his duties, the City agrees to provide benefits to employees injured in the line of duty pursuant to the requirements of the Public Employee Disability Act ("PEDA"). The City agrees to extend PEDA benefits to both injuries and to officers who incur a sickness clearly attributed to the performance of his or her duties. Any disputes regarding the application or interpretation of this section shall be subject to the grievance- arbitration provisions of Article VII.

SECTION 18.5. ALTERNATIVE DUTY- NON-DUTY ILLNESSES AND INJURIES

Where an employee has been injured or is ill outside the line of duty, and when it has been determined by a medical professional designated by the City that the employee is unable to return to work full duty but has been released to perform in a light duty capacity, the employee may be assigned to a light duty position within the Police Department that is compliant with any medical restrictions, provided that such work is available as determined by the Chief or his designed, and further provided the employee is expected to return to work in a full duty capacity within sixty (60) days unless mutually agreed otherwise.

The City shall not be required to "make work" for employees with light duty restrictions. The City may prioritize assignment of light duty positions to employees who have a duty-related injury or illness.

ARTICLE XIX

SICK LEAVE

SECTION 19.1. AMOUNT OF LEAVE

Members of the Police Department shall be entitled to sick leave with pay at the rate of one (1) working day for each month of service up to seven hundred twenty (720) hours. Patrol Division employees working a twelve (12) hour schedule shall accrue eight (8) hours of sick leave credit per month of continuous service and shall be charged according to the time used on the shift.

SECTION 19.2. USAGE

Sick leave may only be used for the following:

- a. personal illness;
- b. medical, dental or optical appointments;

- c. enforced quarantine of employee in accordance with community health regulations;
- d. sickness in the immediate family;
- e. non-compensable injuries.
- f. limit the use of paid sick leave days to five (5) occurrences per year. An occurrence shall be one (1) work day on paid sick leave or one or more consecutive work days on paid sick leave, provided the employee has accrued sick leave day(s) available. An FMLA event shall not be considered an occurrence under this article.
- g. progressive discipline shall take effect after the fifth (5th) occurrence within a twelve (12) month period.

SECTION 19.3. DOCTOR'S SLIP

The City may require a duly authorized practitioner's report before granting sick leave with pay for sick leave absences of three (3) days or longer. Before returning to work, an officer having been absent from duty for more than three (3) consecutive workdays because of illness or injury may be examined by the City physician, or other qualified practitioner at the officer's election, who shall state whether or not such officer is physically able to resume duty. If a pattern of abuse of this section is suspected by the Chief of Police, the City shall reserve the right to require the employee to produce a statement verifying his or her illness by a duly authorized physician when the employee notifies the City of his or her inability to report for duty. If the employee elects to see the City's physician, the examination shall be at the City's expense.

SECTION 19.4. ACCUMULATION: OFFICERS HIRED ON OR BEFORE MARCH 31, 1995

1) Officers with less than twenty (20) years of service shall be paid at the rate of 75% for each unused sick day over ninety (90) days. 2) Officers with more than twenty (20) years of service shall be paid at the rate of 100% for each unused sick day over ninety (90) days. At the time an officer's service is terminated, the officer shall be paid one-half (1/2) pay for every unused day accumulated to his credit.

SECTION 19.5. ACCUMULATION: OFFICERS HIRED ON OR AFTER APRIL 1, 1995

1) Officers with less than twenty (20) years of service shall be paid at the rate of 75% for each unused sick day over ninety (90) days. 2) Officers with more than twenty (20) years of service shall be paid at the rate of 100% for each unused sick day over ninety (90) days. At the time an officer retires, the officer shall be paid one-half (1/2) pay for every unused day accumulated to his

credit, provided the officer has attained twenty (20) years of creditable service with the City of Waukegan's Police Department.

Any officer, covered by this Section, leaving the City's employment prior to retirement shall not be entitled to the one-half (1/2) pay for accumulated sick leave. Officers who retire on non-duty medical pension or duty related disability shall receive benefits as provided in Section 19.4.

ARTICLE XX

INOCULATIONS AND FUNERAL EXPENSES

SECTION 20.1. INOCULATIONS

The City agrees to pay all expenses for inoculation or immunization shots for an officer and members of the officer's family when such becomes necessary as a result of said officer's exposure to contagious disease in the line of duty.

SECTION 20.2. FUNERAL EXPENSES

The City agrees to pay all reasonable funeral and burial expenses of any officer of the Police Department killed in the line of duty.

ARTICLE XXI

REPRESENTATIVES' RIGHTS

SECTION 21.1. ATTENDANCE AT UNION/LABOR COMMITTEE MEETINGS

Subject to the Departments' need for orderly scheduling and need to respond to emergencies, the City agrees that up to two (2) elected officials of the Board of Directors of the Union/Labor Committee shall be permitted time off with pay to attend up to a total of twelve (12) general, board and/or special meetings of the Union/Labor Committee. Labor Committee Executive Board members shall be able to use up to eight (8) additional Compensatory days to attend training.

SECTION 21.2. EXAMINATION OF RECORDS

The Labor Committee or its duly designated representative shall have the right to examine at reasonable times and places a grievant's records which are pertinent to a pending grievance where the grievance has progressed to the third step of the grievance procedure and where the grievant's written permission to examine such records is presented.

ARTICLE XXII

INSURANCE

SECTION 22.1. COMPREHENSIVE MAJOR MEDICAL PLAN

Health insurance coverage shall be provided in accordance with the City's Health Plan which is applicable to all City employees, and shall include both a City major medical indemnity plan with a PPO and HMO options, and the City shall make available a dental and a vision insurance plan, said dental and vision insurance plan to be selected at the sole discretion of the City. The City agrees that they will maintain the same or substantially similar level of benefits, deductibles and co-pays as are current (6/1/2010) in effect for the duration of this agreement. The City further agrees that for the duration of this agreement bargaining unit members will at no time be provided lesser insurance coverage and benefits than are provided to the remainder of the City employees and elected officials of the City.

SECTION 22.2. PREFERRED PROVIDER ORGANIZATION (PPO)

A plan participant may choose to utilize hospitals, physicians, and other health care providers who are members of a Preferred Provider Organization (PPO). If the participant makes such a choice, the plan will pay according to the Schedule of Benefits set forth for incurred charges by the individual for the services of the PPO. If a participant chooses not to utilize a PPO provider, the Plan will pay according to the Schedule of Benefits for Non-PPO services.

SECTION 22.3. PREMIUM ALLOCATION

Patrolmen shall contribute toward the of health insurance premiums by paying the same percentage of required health insurance premium cost as is paid by the remainder of the City employees and elected officials of the City with the city paying the remaining percentage, provided such employees' percentage shall not exceed ten percent (10%) for the duration of this agreement.

SECTION 22.4. COST CONTAINMENT

The City reserves the right to institute cost containment measures relative to insurance coverage, as long as such coverage remains substantially the same. Such changes may include, but are not limited to, mandatory second opinions for elective surgery, pre-admission and continued admission review, prohibition on weekend admissions except in emergency situations, mandatory out-patient elective surgery for certain designated surgical procedures, and concurrent review in

large case management. If a second opinion is required and received, the employee shall have choice as to which opinion to follow.

SECTION 22.5. SECOND OPINION

In the event that the City's insurance requires a second opinion (from any source) which may affect the payment of benefits in any manner, and this second opinion states that treatment is not necessary, then the employee may see another doctor of his/her choice (for a third opinion) and that doctor's opinion shall be accepted as to whether or not treatment is necessary. The "third opinion" doctor shall not be from the same firm as the first opinion doctor.

SECTION 22.6. TERMS OF INSURANCE POLICIES TO GOVERN

The extent of coverage under the insurance policies including HMO and self-insurance plans referred to in this Agreement shall be governed by the terms and conditions set forth in said policies or plans. Any questions or disputes concerning said insurance policy or plan or benefits thereunder shall be resolved in accordance with the terms and conditions set forth in the policies or plans, provided such policies or plans do not conflict with this Ordinance.

SECTION 22.7. LIFE INSURANCE

The City shall provide term life insurance coverage for each employee covered by this Agreement equal to one times the employee's annual salary as of the ratification date of this Agreement. The value of such coverage shall be adjusted each anniversary date of this Agreement to the next highest \$1,000.

SECTION 22.8. POLICY CHANGE

Any time that the City is going to make any significant procedural change(s) to its insurance program, the city shall notify the Union, in writing, two weeks prior to notifying the employees of the change(s) to its insurance program. Such changes shall not substantially change the level of benefits per Section 21.1 above unless mutually agreed to by the parties.

SECTION 22.9 HEALTH INSURANCE BUYOUT

Any employee who is eligible for single, single/spouse, single/child(ren) or family coverage and does not want to be covered by a City health insurance plan may decline the coverage and receive an annual lump sum payment paid in 24 equal semi-monthly installments. The decision will be made during the City annual open enrollment period and will apply to the entire plan year.

ELIGIBLE FOR FAMILY COVERAGE

If a City employee that is eligible for family coverage finds an alternative coverage for themselves and spouse/child(ren) dependent coverage, the reimbursement is \$1,500. If a City employee eligible for family coverage finds alternative coverage for the spouse and child(ren) dependent coverage but wishes to stay on the plan with single coverage only, the reimbursement is \$1,000. If a City employee eligible for family coverage finds alternative coverage for the spouse or child(ren) dependent coverage but wishes to stay on the plan with spouse or child(ren) coverage, the reimbursement is \$500.

ELIGIBLE FOR EMPLOYEE/SPOUSE OR EMPLOYEE/CHILD(REN)

If a City employee finds alternative coverage for themselves and spouse/child(ren), the reimbursement is \$1,000. If a City employee eligible for employee/spouse or child(ren) dependent coverage and finds alternative coverage for the spouse or child(ren) but wishes to stay on the plan with single coverage only, the reimbursement is \$500.

ELIGIBLE SINGLE COVERAGE

If a City employee eligible for single coverage finds alternative coverage for themselves, the reimbursement is \$500. All payments are subject to taxes and withholdings is not added to base salary, and the employee must demonstrate proof of other coverage to qualify. Outside of the open enrollment period, if the employee has a qualifying event, they may opt for a coverage change within 30 days after the event. This includes obtaining previously declined coverage or increasing or decreasing coverage levels depending on the nature of the qualifying event.

ARTICLE XXIII

STIPENDS AND UNIFORM ALLOWANCE

SECTION 23.1. GENERAL REQUIREMENTS

Officers who are required to wear and regularly and continuously maintain prescribed items of uniform clothing and personal equipment shall be issued such clothing and equipment as is necessary and shall be required to clean and maintain such items properly. Equipment shall be issued by a reputable clothier to be selected by the City.

SECTION 23.2. AMOUNT OF ALLOWANCE

Regular, full-time, police officers of the Police Department covered by this Agreement shall be provided with a uniform allowance credit at the time of permanent, full-time employment. Following execution of this Agreement by all parties, (and after one year and one day of employment for new hires), each officer shall be provided with an annual uniform allowance credit of \$1,100 payable in two equal installments, on or before June 20 and December 20, based on the individual officer's anniversary date of permanent, full-time employment. Such allowance shall be paid, and appropriate taxes withheld, at such times and in such manner separate from the employee's normally scheduled payroll check. There will be no retroactive payment of this allowance.

SECTION 23.3. SPECIALTY STIPEND

Evidence technicians, K-9 officers, and SWAT unit officers shall receive an additional uniform allowance credit of seventy-five dollars (\$75.00) per month, during each month that they actually worked as an evidence technician, K-9 officers, and SWAT unit officers. Spanish Interpreter Officers shall receive an additional uniform allowance credit of one hundred fifty dollars (\$150.00) per month and non-Spanish Interpreters shall receive an additional uniform allowance credit of twenty-five dollars (\$25.00) per month, during each month that they actually worked as Interpreter Officers. All such stipends shall be payable semiannually at the time of the regularly scheduled uniform allowance credit. Officers shall receive only one stipend regardless of whether the officer is involved in many units/ qualifies for multiple stipends. The officer will receive the highest of the stipend for which he is eligible. This shall not include the CIT stipend.

SECTION 23.4 SPECIALTY STIPEND DETECTIVES

Officers assigned to the Detective Bureau and or the Community Crimes Division shall receive an additional supplemental allowance of \$1200 annually. This benefit shall be calculated at a rate of \$100 per each month the officer has actually worked in the capacity as a detective and will be paid semiannually at the time of the regularly scheduled uniform allowance credit.

SECTION 23.5 SPECIALTY STIPEND SPANISH INTERPRETER

Officers assigned as Spanish Interpreters shall receive an additional supplemental allowance of \$1800 annually. This benefit shall be calculated at a rate of \$150 per each month the officer has actually worked in the capacity as a detective and will be paid semiannually at the time of the regularly scheduled uniform allowance credit.

SECTION 23.6 SPECIALTY STIPEND NON-SPANISH INTERPRETER

Officers assigned as Interpreters for a language other than Spanish shall receive an additional supplemental allowance of \$300 annually. This benefit shall be calculated at a rate of \$25 per each month the officer has actually worked in the capacity as a detective and will be paid semiannually at the time of the regularly scheduled uniform allowance credit.

SECTION 23.6 SPECIALTY STIPEND K-9 OFFICERS.

Officers assigned as K-9 Officers receive an additional supplemental allowance of \$1200 annually. This benefit shall be calculated at a rate of \$100 per each month the officer has actually worked in the capacity as a detective and will be paid semiannually at the time of the regularly scheduled uniform allowance credit.

SECTION 23.7 CRISIS INTERVENTION TRAINING STIPEND.

Officers who have received crisis intervention training shall receive a stipend equal to two percent (2.0%) of base salary. Said amount shall be added to the affected officer's base pay at his/her current step and shall be included in any calculation of benefit such as overtime and holiday pay. The CIT Stipend shall be considered for pension purposes and the officer shall pay 9.91% pension contribution each year they receive this CIT Stipend.

SECTION 23.8. NEW OFFICERS

All newly hired police officers shall receive an additional, one-time allowance of \$100 payable upon commencement of the Field Training Program administered by the Department.

ARTICLE XXIV

DRUG AND/OR ALCOHOL TESTING

The Labor Committee and the City are committed to the principle that professionalism in the Police Department can only be maintained through a drug free work environment.

SECTION 24.1. PHYSICAL EXAMINATION REQUIREMENT

The Chief of Police may order all officers to complete a full or partial physical examination once every year, at staggered times as determined by the Chief. As part of this examination, the City shall have the right to have body fluid taken during the examination tested for improper use of prescribed drugs or use of illegal drugs. The Chief of Police, or his designee above the rank of Sergeant, may also order that body fluid be taken and tested at any time where there exists reasonable suspicion to believe that the officer is using or is under the influence of illegal drugs or alcohol, or is abusing prescribed drugs. The body fluid(s) tested for improper use of prescribed drugs or for use of illegal drugs shall be performed by the GC/MS (Gas Chromatography/Mass Spectrophotometry) or scientifically equivalent method at a NIDA certified laboratory or some other State certified laboratory agreeable to both the City and the Labor Committee.

SECTION 24.2. LABOR COMMITTEE REPRESENTATION

When an officer is requested to submit to a drug test he shall have the right to have a Labor Committee Representative present during such test so long as it does not unreasonably delay the test, and he shall be given at least some of the reasons for the test in writing. If the officer waives his right to a Labor Committee representative, such waiver shall be in writing.

SECTION 24.3. SECOND TEST

The officer shall have the right to a second urine sample, if requested, or a blood sample, be taken at the time of the first sample and retained for possible testing should the initial test prove positive. The officer being tested shall be given a copy of his test(s) results when such test(s) results become available.

SECTION 24.4. HANDLING OF SAMPLE

The body fluid samples shall be properly marked, sealed and shall be signed by the officer being tested, a Labor Committee Representative if requested, and a representative of the City. The sample shall be transported, mailed, or delivered to a certified courier of the NIDA Laboratory by the Labor Committee Representative and a Representative of the City.

SECTION 24.5. SECOND TEST AND DISCIPLINE

If an officer tests positive for illegal drugs or of abuse of prescribed drugs according to NIDA Standards, a second sample, if taken shall be tested as soon as possible. If the test(s) is positive, the Chief of Police may discipline the officer and/or may direct the officer to seek assistance through an Employee Assistance Program.

SECTION 24.6. ALCOHOL.

An employee under the influence of alcohol, as described in this Section, shall be subject to discipline, up to and including discharge. An employee who tests at a level of .03 or greater on the BAC standard shall be subject to discipline, up to and including discharge. Employees testing at levels greater than .000 but less than .03 BAC shall not be disciplined and may remain at work, at the officer's discretion, only if assigned to non-enforcement duties in the station.

SECTION 24.7. RANDOM TESTING

All members of the bargaining unit shall be subject to random drug testing. Members shall be assigned a permanent number and selection of those to be tested shall be determined by a random drawing conducted by the Chief of Police, in the presence of a selected Labor Committee Officer. The Chief will be permitted to have four random drawings per year with a maximum of ten (10) persons per drawing.

SECTION 24.8. RANDOM SELECTION

Officers will be selected for random testing in the following manner: all officers will be assigned a permanent number and all numbers will be painted on ping pong type balls, provided by the FOP at their expense, and placed into a cylinder style mixer, provided by the FOP at their expense, and the Chief will then, without looking pick the desired number of balls from this device. The selection of numbers will be witnessed by a member of the Labor Committee selected by the executive board of the Labor Committee. After an officer is selected, the testing will proceed as described in Article 24 of the contract.

SECTION 24.9. TESTING FOR SPECIALIZED UNITS

All members of the Bargaining Unit voluntarily assigned to the Department's Narcotics Unit or to the Metropolitan Enforcement Group (MEG) or to Special Operations Unit (SOU) may be required to submit to drug testing as a condition of their continued assignment. Such testing shall be limited to no more than four required tests per calendar year.

SECTION 24.10. TESTING FOR PROMOTIONS

All members of the Bargaining Unit will be required to submit to a drug test as part of the promotion examination to the rank of Sergeant.

SECTION 24.11. CONFIDENTIALITY

All drug testing and employee assistance shall be held in the highest confidence by the City and the Labor Committee officials involved.

SECTION 24.12. PAYMENT FOR TESTING

All drug testing shall be at the City's expense and shall be conducted while the officer is on duty or is being paid.

SECTION 24.13. CONSTITUTIONAL RIGHTS

Nothing in this Article shall be construed to limit an officer's constitutional rights.

ARTICLE XXV

FITNESS

SECTION 25.1. MEDICAL EXAMINATIONS

The City may require that the employee have an examination by a qualified and duly licensed physician by the City and at the expense of the City. The City shall be furnished with a copy of any medical report which shall be made available to the employee, if so requested.

SECTION 25.2. PHYSICAL FITNESS

The City may establish reasonable physical fitness goals and standards. Such goals and standards shall be made known to bargaining unit personnel at least sixty (60) days prior to their implementation, and shall take into consideration the officers age and gender.

SECTION 25.3. TESTING STANDARDS

The physical fitness training standards for the Waukegan Police Department shall be detailed and shall duplicate fitness tests and accepted standards as published by the Illinois local Governmental Law Enforcement Officers Training Board, dated January 1, 1990.

SECTION 25.4. TESTING OF EMPLOYEES

All members of the Waukegan Police Department are required to participate in a fitness test once every twelve months. Tests will be conducted and monitored by members of the Waukegan Police Department. Fitness tests will be administered on an annual basis. Employees will be given no less than sixty (60) day's notice of the scheduled test date. Employees shall be excused from participating in the taking of his/her test upon presentation of a written excuse from a physician. Upon a written release of the same physician, the employee will be administered a fitness test no less than 60 days of receipt of the physicians release, or sooner if mutually agreed. The physical fitness test administered by the Department will not serve as a basis for determining an officer's fitness for duty.

This test is not task specific or directly job related. However, nothing in this section limits the ability of the Chief of Police to require training for officer's who fail to obtain the minimum standards.

SECTION 25.5. THE PHYSICAL FITNESS TEST

The physical fitness test shall consist of the following four activities:

1. Sit and Reach
2. One Minute Sit Up
3. Bench Press
4. 1.5-mile run

SECTION 25.6. MONITORING TEST PROCEDURE

During the test procedures, each test will be monitored by a member of the bargaining unit and a representative of management. The bargaining unit and management will select their own representatives to monitor the tests. Bargaining unit representatives monitoring the test of another employee shall be on non-duty time. Should a disagreement arise on a pass/fail judgment a third monitor agreed on by both the bargaining unit and management will be asked to monitor a retest of the subject in question after a suitable rest period of no less than fifteen minutes

be given to the member in question. If a member is required to retest due to a discrepancy between the monitors, the first test would not count against the members as a first fail situation.

SECTION 25.7. COMPENSATION FOR TEST PROCEDURE

Whenever possible, the test will be given during an officer's on duty time. If an officer is scheduled to take the test during his off duty time, he will be compensated at the overtime rate of one and one half (1 1/2) hours their regular straight time hourly rate of pay for all hours worked with a two (2) hour minimum call back to be paid at the rate of time and one half (1 1/2) their regular straight time hourly rate of pay.

SECTION 25.8. WORKOUT FACILITY

The city shall keep and maintain a basic workout facility which shall be available to officers at all times. In the event the city fails to keep and maintain a basic workout facility available to the officers, this article shall become null and void until such time as the city reinstitutes a basic workout facility.

SECTION 25.9. NO DISCIPLINE

The city and the Labor Committee are committed to physical fitness as but one means of encouraging healthy, productive, and physically competent law enforcement professionals. The City and Labor Committee encourage all law enforcement officers to become physically fit and to maintain their fitness during their length of service. Although the City expects all law enforcement officers to apply their best efforts to maintain sound physical fitness, no discipline shall be administered against any officer who fails to successfully pass the annual physical fitness test.

ARTICLE XXVI

WAGES

SECTION 26.1. WAGE SCALE

A newly hired Patrolman shall be paid at the beginning rate (Step 1) of the Patrolman's salary range. He/she will be eligible to advance to step two of the Patrolman's salary range after 12 months of continuous and satisfactory employment and will be eligible to advance to further steps in said salary range in accordance with the agreed upon step plan.

The salary schedule shall show an annual increase on May 1 of each year of the Agreement as follows:

May 1, 2022	2.50%
May 1, 2023	3.00%
May 1, 2024	3.25%
May 1, 2025	3.25%

SECTION 26.2 LONGEVITY

When an officer completes fifteen (15) years of service, they shall receive longevity pay in the amount of one (1) percent. When an officer completes twenty (20) years of service, they shall receive longevity pay in the amount of two (2) percent. Said amount shall be added to the affected Officer's base pay at his current step on his/her fifteenth year of service and shall be included in any calculation of benefit time such as overtime and holiday pay. This Longevity payment IS NOT CUMULATIVE. This longevity increase shall be considered for pension purposes and the Officer shall pay 9.91% pension contribution each year they receive this longevity pay. For the purposes of this section only, the officers who were laid off in 2009 shall be credited with continuous service as if the layoff never occurred.

SECTION 26.3. LATERAL TRANSFERS

Police recruits with proven experience as law enforcement professionals with other Illinois communities may be granted lateral transfer credits less than or equal to five years of service but no greater than the officer's actual experience in years, for wage placement only. Eligible officers must have completed the State of Illinois Law Enforcement's Certification Course. Placement on the pay scale shall be at the discretion of the Mayor and Chief of Police, and would be based upon years of experience, type of experience, education, bilingual competence, and technical expertise. Seniority, pension standing and/or other non-wage benefits are not impacted by lateral transfer credits so granted.

SECTION 26.4. SALARY EFFECTIVE FY 2022 - MAY 1, 2022, TO APRIL 30, 2023

<u>Salary Step</u>	<u>Step Description</u>	<u>Annual</u>	<u>Biweekly</u>	<u>Hourly</u>
I	Starting	\$71,991.66	\$2,768.91	\$34.61
II	1 year 1 day to 2 years	\$83,685.67	\$3,218.68	\$40.23
III	2 years 1 day to 3 years	\$86,192.01	\$3,315.08	\$41.44
IV	3 years 1 day to 4 years	\$89,122.90	\$3,427.80	\$42.85
V	4 years 1 day to 6 years	\$98,745.22	\$3,797.89	\$47.47
VI	6 years 1 day to 7 years	\$105,634.40	\$4,062.86	\$50.79
VII	7 years 1 day	\$110,194.61	\$4,238.25	\$52.98

SECTION 26.5. SALARY EFFECTIVE FY 2023 - MAY 1, 2023, TO APRIL 30, 2024

<u>Salary Step</u>	<u>Step Description</u>	<u>Annual</u>	<u>Biweekly</u>	<u>Hourly</u>
I	Starting	\$74,151.41	\$2,851.98	\$35.65
II	1 year 1 day to 2 years	\$86,196.24	\$3,315.24	\$41.44
III	2 years 1 day to 3 years	\$88,777.77	\$3,414.53	\$42.68
IV	3 years 1 day to 4 years	\$91,796.59	\$3,530.64	\$44.13
V	4 years 1 day to 6 years	\$101,707.58	\$3,911.83	\$48.90
VI	6 years 1 day to 7 years	\$108,803.43	\$4,184.75	\$52.31
VII	7 years 1 day	\$113,500.45	\$4,365.40	\$54.57

SECTION 26.6. SALARY EFFECTIVE FY 2024 - MAY 1, 2024 TO APRIL 30, 2025

<u>Salary Step</u>	<u>Step Description</u>	<u>Annual</u>	<u>Biweekly</u>	<u>Hourly</u>
I	Starting	\$76,561.34	\$2,944.67	\$36.81
II	1 year 1 day to 2 years	\$88,997.62	\$3,422.99	\$42.79
III	2 years 1 day to 3 years	\$91,663.05	\$3,525.50	\$44.07
IV	3 years 1 day to 4 years	\$94,779.98	\$3,645.38	\$45.57
V	4 years 1 day to 6 years	\$105,013.07	\$4,038.96	\$50.49
VI	6 years 1 day to 7 years	\$112,339.54	\$4,320.75	\$54.01
VII	7 years 1 day	\$117,189.22	\$4,507.28	\$56.34

SECTION 26.7. SALARY EFFECTIVE FY 2025 - MAY 1, 2025 TO APRIL 30, 2026

<u>Salary Step</u>	<u>Step Description</u>	<u>Annual</u>	<u>Biweekly</u>	<u>Hourly</u>
I	Starting	\$79,049.58	\$3,040.37	\$38.00
II	1 year 1 day to 2 years	\$91,890.04	\$3,534.23	\$44.18
III	2 years 1 day to 3 years	\$94,642.10	\$3,640.08	\$45.50
IV	3 years 1 day to 4 years	\$97,860.32	\$3,763.86	\$47.05
V	4 years 1 day to 6 years	\$108,426.00	\$4,170.23	\$52.13
VI	6 years 1 day to 7 years	\$115,990.58	\$4,461.18	\$55.76
VII	7 years 1 day	\$120,997.87	\$4,653.76	\$58.17

SECTION 26.8. PENSION CONTRIBUTIONS

The City agrees to “remit” the police officers’ contributions to the Waukegan Police Pension Fund, required under Section 3-125.1 of Chapter 108 1/2 of the Illinois Revised Statutes, as provided in Section 3-125.2 of Chapter 108 1/2. This shall be done without any reduction in the cash salary of the police officer and without any offset against any future salary increase or combination thereof. The City shall “remit” these contributions within thirty (30) days of receipt of evidence from the Board of Trustees of the Waukegan Police Pension Fund that the Board has voted to approve such pension “remittance” and that all necessary requirements set by the Internal

Revenue Service, the Illinois Department of Revenue, or the Illinois Department of Insurance are met.

SECTION 26.9. RETROACTIVITY

Employees covered by this Agreement who are still on the active payroll at the beginning of the next payroll period immediately following the ratification of this Agreement by both parties shall receive a retroactive payment, and employees who have retired since May 1, 2022. Said payment shall be made at a rate reflective of the difference between the pay ranges existing immediately prior to the ratification of this Agreement and the new salary range, which is effective the first payroll period following ratification. Payment shall reflect the difference between the old base and the new base for all hours paid since 12:01 A.M., May 1, 2022.

ARTICLE XXVII

REOPENER

Notwithstanding any provisions to the contrary, the following items will, at the option of either party, be subject to reopened negotiations upon thirty (30) days' written notice to the other party.

A. In the event the Rules and Regulations of the Waukegan Civil Service System are materially changed or abolished, those Articles of this Agreement which are governed by such materially changes Rules or Regulations shall be subject to renegotiation;

B. Any provision of this Agreement mutually agreed upon by the parties shall be subject to renegotiation; or

C. If, at any time during the life of this Agreement, any portion of the 5% Utility Tax shall be reduced or eliminated further by litigation or Council action, the City has the option to reopen negotiations over the wage rates contained in this Agreement. However, if the Labor Committee and the City cannot come to an agreement during such renegotiations then the wage rates contained in this Agreement shall remain in full force and effect and the City may proceed with whatever cost-cutting measures, if any, it deems to be appropriate.

ARTICLE XXVIII

SAVING CLAUSE

If any provision of this Agreement, or the application of such provision, should be rendered or declared invalid by any court action or by reason of any existing or subsequently enacted

legislation, the remaining parts or portions of this Agreement shall remain in full force and effect. The parties shall attempt to renegotiate the invalidated provision.

A R T I C L E X X I X

ENTIRE AGREEMENT

This Agreement constitutes the complete and entire agreement between the parties, and concludes collective bargaining between the parties for its term. This Agreement supersedes and cancels all prior practices and agreement, whether written or oral, unless expressly stated in this Agreement.

The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law or Ordinance from the area of collective bargaining, and that the understandings and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreements.

Therefore, the City and the Labor Committee, for the duration of this Agreement, each voluntarily and unqualifiedly waives the rights, and each agrees that the other shall not be obligated, to bargain collectively with respect to any subject or matter referred to, or covered in this Agreement, or with respect to any subject or matter not referred to, or covered in this Agreement, even though such subjects or matters may not have been within the knowledge or contemplation of either or both of the parties at the time they negotiated or signed this Agreement.

ARTICLE XXX

TERMINATION

SECTION 30.1. TERMINATION IN 2026

This Agreement will be effective as of the day after the contract is executed by both parties and shall remain in full force and effect until 11:59 p.m. on the thirtieth day of April, 2026. It shall be automatically renewed from year to year thereafter unless either party shall notify the other in writing at least sixty (60) days prior to the anniversary date that it desires to modify this Agreement. In the event that such notice is given, negotiations shall begin no later than forty-five (45) days prior to the anniversary date except if otherwise mutually agreed. This Agreement shall remain in full force and be effective during the period of negotiations and until notice of termination of this Agreement is provided to the other party in the manner set forth in the following paragraph.

SECTION 30.2. NOTICE OF TERMINATION

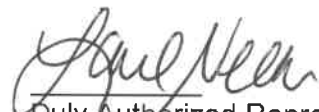
In the event that either party desires to terminate this Agreement, written notice must be given to the other party not less than ten (10) days prior to the desired termination date which shall not be before the anniversary date set forth in the preceding paragraph.

IN WITNESS WHEREOF, the parties hereto have affixed their signatures this ____ day of July, 2023.

FOR THE CITY OF WAUKEGAN:


Duly Authorized Representative

FOR THE LABOR COMMITTEE:


Duly Authorized Representative

RECEIVED

AUG 31 2023

**WAUKEGAN CITY CLERK
JANET E. KILKELLY**

APPENDIX "A"

WAUKEGAN POLICE BENEVOLENT LABOR COMMITTEE, UNIT #42

Check Off Dues Authorization

I, _____, the undersigned, hereby authorize the regular monthly deduction of dues and assessments levied by the Policemen's Benevolent Labor Committee. Said dues, to be deducted once each payday (bi-weekly), shall be remitted and made payable to the Policemen's Benevolent Labor Committee Local Unit #42 at 1146 Waukegan Road #321, Waukegan, IL 60085. Any objection to said dues may be processed through the Illinois State Labor Relations Board pursuant to the Board's Rules and Regulation. The Labor Committee certifies that all dues and assessments will be utilized for the sole purpose of collective bargaining, contract administration, and/or the legal defense of its members. The Labor Committee further certifies that the fair share dues covers only the cost of collective bargaining and contract administration.

_____ Full membership @ \$65.00 per month

Signature: _____

Print Name: _____

Date: _____

APPENDIX “B”

PBLC Hireback and Forced Hireback Procedure

The following rules and definitions shall apply when assigning overtime:

1. “On the road” shall be defined as a patrolman assigned to a patrol shift, assigned to a zone, and available for calls.
2. “On the desk” shall be defined as a patrolman assigned to the Police front desk.
3. Prior to any forced hireback, management will make every reasonable effort to find a volunteer to work the required overtime. Absent a volunteer, management will utilize a PBLC member working in a different division or unit to fill the patrol spot requiring the forced overtime. This option will only be used for forced overtime and not in lieu of volunteer overtime.
4. In the event a PBLC member is utilized to work patrol shift, as described in paragraph 3 above, said Officer will be given the opportunity to work an equal amount of overtime, in their regularly assigned position, if the Officer and City agree it is necessary in order to keep up with their normal work assignments.

Hireback Posting Procedure:

1. Upon realizing a hireback is needed, a Command Officer shall post the hireback in VCS with a 24-hour cutoff for signing up.
2. A Command Officer shall then assign the hireback to the volunteer PBLC Officer with the least overtime hours and then seniority.
3. Full duty Officers and Officers willing to work a full hireback shift get priority over light duty Officers and those Officers only requesting a partial hireback shift. Furthermore, full duty Officers will always have priority over light duty Officers.
4. The assignment shall be made as soon as is reasonable after the 24-hour cutoff. In the event no Officers sign up for the hireback, a Command Officer will then post the hireback as an immediate fill.

Hireback Posting Procedure- Immediate Fill:

1. Any hireback for a shift starting within 24 hours is an “immediate fill” hireback.
2. A Command Officer must post the hireback on VCS as soon as possible.
3. The Command Officer shall include their preferred method of contact.

4. It will be the responsibility of the Officer volunteering to work the immediate fill hireback to sign up in VCS and contact the assigning Command Officer to confirm s/he signed up for the hireback position.
5. Command Officer(s) shall assign the hireback immediately upon receiving notification from the volunteering Officer. Immediate fill is assigned on a first come, first serve basis.

Hireback Posting Procedure- Forceback:

1. The VCS will track the forceback hours of all PBLC members. The list will rest May 1st of every year.
2. Prior to assigning a forceback, Command Staff must complete the Immediate Fill Hireback posting procedure.
3. Additionally, Command Staff must seek volunteers over the police radio.
4. Additionally, Command Staff shall utilize on duty PBLC members assigned to different divisions/ units to work the needed hireback from PEDL.
5. Command Staff should attempt to call Officers who have elected to be contacts for last minute overtime.
6. If there are no volunteers, Command Staff shall utilize on duty PBLC members assigned to different divisions/ units to work the needed hireback from the PEDL.
7. Should the above options become exhausted, forceback will be assigned based on the lowest forceback hours worked in reverse seniority order through bargaining unit members working an adjacent shift.
8. An Officer must be working regular hours immediately adjacent to the forceback shift to be eligible for the forceback.
9. Officers working hireback on adjacent shift are not eligible for forceback.
10. No PBLC member will be assigned a forceback more than once per his or her consecutive work cycle (i.e., 2-day, 3-day, 4-day, 5-day depending on the Officer's assignment).
11. If more than one Officer is forced on any given shift, officer will be assigned based on the Senior Officer's choice. Provided that choice does not allow one of the Officers to be skipped.
12. Should a volunteer come forward, after the forceback is assigned, the forced Officer must agree to be removed from his/ her assignment.

13. Once a forceback is assigned, the assigned officer will not be bumped from his assigned hours unless said officer agrees.

Hireback Procedure- Forceback Unusual Circumstance:

1. In the event forceback is needed for unusual circumstance events (i.e., looting, riots, no shift personnel available for regular shift forceback), all Officers covered under the PBLC contract will be eligible for the forceback.
2. The forceback will be assigned in reverse seniority only, regardless of forceback hours worked.
3. This list shall reset every Sunday at 00:00 hours.

APPENDIX "C"

Effective upon ratification of this Agreement, the position of LGBTQ Liaison shall be open to all bargaining unit members and shall be filled through an interview process conducted by the Police Chief or his designee.